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Case Number: 24STCV26629 Hearing Date: July 30, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

ANTONY WARD and JANICE WARD,

Plaintiffs,

v.

BLOCK DRUG COMPANY, et al.

Defendants.

Case No. 24STCV26629

Hearing Date: July 30, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

CVS PHARMACY, INC.'S MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On October 11, 2024, Plaintiffs Antony and Janice Ward filed their complaint for personal injury alleging Mr. Ward developed malignant mesothelioma from direct exposure to asbestos-contaminated talcum powder products. On November 15, 2024, Plaintiffs dismissed their claims for punitive damages against Walgreens and CVS. Ms. Ward was dismissed from this action on May 13, 2025.

On February 5, 2026, Defendant CVS Pharmacy, Inc. ("CVS" or "Defendant") moved for summary judgment or summary adjudication, arguing that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to any asbestos-containing product manufactured, distributed by CVS.

On July 10, 2026, Plaintiff opposed, arguing his evidence raises triable issues of material fact regarding Mr. Ward's exposure to asbestos from talc supplied by CVS.

On July 17, 2026, CVS replied, arguing Plaintiff's evidence fails to raise a triable issue of material fact to defeat summary judgment.

CVS meets its initial burden to prove that Plaintiff's factually devoid discovery responses support an inference that they lack and cannot reasonably obtain evidence to support his contention that Mr. Ward was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff presented sufficient evidence in opposition to raise a triable issue of material fact over whether the CVS foot and body powders Mr. Ward used were contaminated with asbestos. Accordingly, the motion for summary judgment is denied.

CVS's motion for summary adjudication fails to completely dispose of the negligence cause of action. CVS's motion for summary adjudication is denied.

II.

Evidentiary Objections

Defendant's objections

Sustained

1. Exhibit

D to Plaintiff's Index of Exhibits in Support of their Opposition to CVS's Motion for Summary Judgment or, in the Alternative, Summary Adjudication, Relevant Excerpts of the deposition of Vi-Jon's Corporate Representative, Aleathea Murray taken in the matters of Hauge v. Black Creek Corporation, et al., Second Judicial District of the State of Minnesota, County of Ramsey, File No. 62-CV 25-2361, Lynn v. Block Drug Company, Inc., et al., Alameda Superior Court, Case No. 25CV111054 and Griffin v. Allied Packing & Supply, Inc., et al., Alameda Superior Court, Case No. 25CV121914, on November 19, 2025.

This testimony is

hearsay. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiff fails to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition.

The objection is sustained.

3. Declaration

of Dr. Haber In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication, ¶ 8 "I am informed that Plaintiff contends that Mr. Ward was exposed to asbestos from his use of five brands of talc-based foot and body powder products: the CVS and Walgreens store brands, Gold Bond, Dr. Scholl's, and Desenex. Each of these products contained asbestos-contaminated talc. Mr. Ward regularly used these products, applying them to his feet and body, over a period spanning 1987 to 2023, and purchased

each of them at CVS and Walgreens stores, among other retailers. I am further informed that these exposures resulted in his later development of malignant mesothelioma. The bases for the presence of asbestos in the talc used to manufacture these products, and in the finished products themselves, are set forth in the opinions of Mark P.S. Krekeler, Ph.D. (as to the CVS and Walgreens store brands) and R. Mark Bailey, P.G. (as to Gold Bond, Dr. Scholl's, and Desenex), upon which I rely as described below."

The declaration states

what Haber was informed others contend and also relates case-specific hearsay. (People v. Sanchez (2016) 63 Cal.4th 665 ["What an expert cannot do is relate as true case-specific facts asserted in hearsay statements, unless they are independently proven by competent evidence or are covered by a hearsay exception."].) In the cited portions of this declaration, Dr. Haber directly relates the facts about the talc source for CVS and Walgreens to the fact finder.

5-9. These

objections to portions of Dr. Haber's declaration are sustained for the same reasons as objection number 3.

Overruled in part

2. Declaration

of Dr. Krekeler In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication, ¶¶ 20-26.

CVS objects to portions

of the declaration of Dr. Krekeler on the grounds that the declaration lacks foundation, lacks personal knowledge, is speculative, and has improper basis. Although CVS argues that paragraphs 20-26 improperly relate portions of the deposition testimony of Gary Tomaino, only paragraph 22 and the first half of paragraph 23 contain hearsay statements quoted from the documents attached to Dr. Krekeler's declaration. CVS's objections to the quoted statements in paragraphs 22 and 23 are sustained.

CVS also objects to the

declaration on the grounds that there is no basis for Dr. Krekeler's assumption that CVS body powder products from 2005 through 2016 contained talc sourced from mines in Montana. However, this argument goes to the weight of Plaintiff's

evidence that CVS's talc suppliers sourced their talc from Montana rather than the admissibility of Dr. Krekeler's opinion. The objection is overruled.

Overruled

4, 10. Declaration

of Dr. Haber In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication, ¶¶ 25-26, 32.

Dr. Haber declares in

these paragraphs that he is familiar with various articles and scientific literature on asbestos exposure from cosmetic talcum powder. (Haber Decl. at ¶¶25-26.) Dr. Haber further declares that he is aware of "medically and scientifically recognized" facts that asbestos can cause mesothelioma and that there is "no accepted threshold of exposure to asbestos above background that is incapable of causing mesothelioma." (Id. at ¶32.) Based on this knowledge, Dr. Haber opines that Mr. Ward developed mesothelioma after the appropriate latency period. (Id.)

Paragraphs 25-26 of Dr.

Haber's declaration state in general terms that he reviewed and relied on articles and other literature to form his opinions. (See Sanchez, supra, 63 Cal.4th at pp.685-686, emphasis in original ["Any expert may still rely on hearsay in forming an opinion, and may tell the jury in general terms that he did so."].) The facts Dr. Haber related in paragraph 32 of Dr. Ward's declaration, other than his opinion about Mr. Ward's exposure, are not case-specific but concern asbestos exposure and mesothelioma in general. (Id. at p.685 ["Our decision does not call into question the propriety of an expert's testimony concerning background information regarding his knowledge and expertise and premises generally accepted in his field. Indeed, an expert's background knowledge and experience is what distinguishes him from a lay witness, and, as noted, testimony relating such background information has never been subject to exclusion as hearsay, even though offered for its truth."].) Accordingly, the statements Dr. Haber made in paragraphs 25, 26, and 32 are not excluded as hearsay. The objections are overruled.

11. Declaration

of Antony Ward In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication in its entirety.

CVS objects to Mr. Ward's declaration on the grounds that it lacks foundation, is irrelevant, and is prejudicial. Again, this objection fails to direct any objection to any particular statement in the declaration.

CVS also objects on the grounds that the declaration runs afoul of the rule articulated in *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1. The *D'Amico* rule comes into play when a party makes statements in a declaration opposing summary judgment that contradicts earlier discovery responses or deposition testimony. When a party's admission "is obtained not in the normal course of human activities and affairs but in the context of an established pretrial procedure whose purpose is to elicit facts," this admission "is entitled to and should receive a kind of deference not normally accorded evidentiary allegations in affidavits." (*D'Amico*, supra, 11 Cal.3d at p.23.) In other words, a party may not create an issue of fact on summary judgment by a declaration which contradicts prior deposition testimony unless the contradiction is explained. (*Preach v. Monter Rainbow* (1993) 12 Cal.App.4th 1441, 1451 ["In determining whether any triable issue of material fact exists, the trial court may, in its discretion, give great weight to admissions made in deposition and disregard contradictory and self-serving affidavits of the party."]; see also *Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1502.)

Here, Mr. Ward's declaration stating he "can unequivocally attest" that he purchased "many bottles of CVS-brand body powder products" between 2005 and 2016 does not contradict his earlier deposition testimony. (Ward Decl. at ¶3.) Mr. Ward previously testified that he used CVS foot and body powder between 1987 and 2023. (Stock Decl., Exh. A at 285:19-24, 290:2-16 ["Q: And you started using the CVS foot powder in 1987; correct? A: Yes. Q: When did you last use CVS store brand foot powder? A: 23...Q:...You also started using the CVS body powder in 1987, correct? A: That is correct. Q: Did you also last use a CVS body powder in 2023? A: That is correct."].) Even if the later declaration describes a narrower range of time, 2005 and 2016, this statement does not contradict Mr. Ward's earlier testimony. Accordingly, the *D'Amico* rule does not apply here. The objection is overruled.

III.

Discussion

A.

Legal Standard

A defendant seeking

summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In

asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where asbestos was not an intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is “more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it.” (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter “Gibbons”].) Evidence sufficient to support this finding includes “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

CVS argues that it is entitled to summary judgment because (1) Plaintiff’s factually devoid discovery responses support an inference that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing product sold by CVS and (2) Plaintiff can only speculate that his exposure to a CVS product was a substantial factor in causing his mesothelioma.

1. Defendant’s

Burden: Factually Devoid

CVS argues that Mr. Ward has no proof that he purchased asbestos-contaminated products from CVS because he failed to provide specific testimony of the quantities of products he purchased from CVS, has no documents evidencing his purchases from CVS, and had no personal knowledge of whether the products he purchased were contaminated with asbestos. (Motion at pp.14-18 [“Critically, Plaintiff’s written discovery responses fail to set forth any specific facts demonstrating that he was exposed to asbestos as a result of using Powder Products purchased from CVS...As an initial matter, none of Plaintiff’s responses provide any information specific to CVS, such as identifying any employees, specific instances where Plaintiff or any other person purchased any Powder Products from CVS, any specific stores where he allegedly purchased any Powder Product from CVS, or any company documents...Plaintiff fails to actually identify in his discovery

responses any specific 'generic' or 'store brand' talcum powder products which he contends that he obtained from CVS, and likewise failed to specifically identify any such products at deposition...Nor does Plaintiff have any containers of any Powder Products allegedly purchased from CVS, to which he was purportedly exposed...With no bottles of said products, there can be no testing of products from CVS to which Plaintiff was allegedly exposed, and thus, Plaintiff lacks evidence that any of the said products from CVS contained asbestos."].)

In opposition, Plaintiff

argues that they have evidence that CVS's talc suppliers sourced their talc from mines that were contaminated with asbestos. (Opp. at pp.15-16 ["This affirmative evidence demonstrates the existence of a triable issue of fact as to whether Plaintiff was exposed to asbestos from CVS supplied talcum powder products and that such exposures were sufficient to increase his risk of developing mesothelioma. Given Plaintiff's evidentiary showing, the Court cannot conclude that, as a matter of law, based upon the evidence before it, triable issues of material fact do not exist. Accordingly, CVS' request for summary judgment must be denied."].)

In reply, CVS argues that

Plaintiff's evidence fails to establish that the particular products Mr. Ward purchased from CVS was contaminated with asbestos. (Reply at p.5 ["Rather than identifying admissible evidence that the particular powder products allegedly purchased by Mr. Ward from CVS—whether CVS-branded or national-brand products—contained asbestos, Plaintiff relies on generalized expert opinions concerning historical talc suppliers, mine geology, historical testing, and other products. Those opinions do not substitute for product-specific evidence."].)

i. Analysis

CVS moves for summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence to support their contention that Mr. Ward was exposed to asbestos by an asbestos-contaminated product for which CVS was responsible. Specifically, CVS argues that Plaintiff's factually devoid discovery responses support an inference that they lack and cannot reasonably obtain evidence to support their claims against it. When CVS asked Plaintiff to state "all EVIDENCE that supports [his] contention that any TALCUM POWDER PRODUCT, sold by CVS and to which [he was] EXPOSED, contained asbestos," Plaintiff responded by referring to a list of CVS's own records. (White Decl.,

Exh. 12 at pp.4-20.) When CVS asked Plaintiff to "IDENTIFY all TALCUM POWDER PRODUCTS that [they] claim were obtained from CVS and EXPOSED [Mr. Ward] to asbestos," Plaintiff responded as follows:

"Mr. Ward was an avid runner since he moved to the United States in 1987. He ran for fitness and in competition. He ran every Los Angeles Marathon starting in 2009, including the 2017 race in the pouring rain. He used foot powder products daily to prevent and cure athlete's foot, and to keep his feet dry and comfortable. Mr. Ward regularly inhaled asbestos dust from these products, contributing to his development of mesothelioma. He used and purchased from Defendant CVS CO., the following brands of foot powder: Desenex, Dr. Scholl's, Gold Bond and CVS's store brands and/or generic foot powders.

Defendant

was aware that the level of asbestos contamination contained in its talcum powder was hazardous to human health. The source of this information is found in the medical and scientific literature available to CVS, as well as CVS's corporate documents, which are already in propounding Defendant's possession. In addition, despite the knowledge demonstrated in its corporate documents and/or by its employees' testimony, CVS failed in all respects to adequately warn Plaintiff Antony Ward or other consumers or users and/or bystanders of the significant hazards inherent with such products."

(White Decl., Exh. 12 at pp.21-22.) The remainder of the response states that CVS knew its products contained asbestos and failed to warn the public of the risks of asbestos exposure, a decision motivated by financial interest. (Id. at p.22.) Plaintiff incorporated his answers to interrogatories 1 and 2 for the remainder of CVS's interrogatories. (Id. at pp.23-28.) Plaintiff's response to form interrogatory 17.1 identifies Mr. Ward, his family members, and friends, as witnesses who may have evidence to support their claims. (Id., Exh. 13 at pp.6-7.) Plaintiff also identified CVS's person most qualified, expert witnesses, and witnesses named in Mr. Ward's medical and employment records. (Id.)

CVS

meets its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Mr. Ward was exposed to an asbestos-contaminated product for which it was responsible. Because Plaintiff alleges that the body and foot powders at issue were made with talc contaminated with asbestos, Plaintiff's discovery responses were required to set forth facts from which the court can

reasonably infer that it was "more likely than not that the talc product was contaminated with asbestos during the time" that Mr. Ward used it. (Strobel, supra, 70 Cal.App.5th at p.815.)

Here,

Plaintiff's responses to an interrogatory seeking all facts supporting his contention that Mr. Ward was exposed to asbestos-contaminated talcum powder products supplied by CVS failed to state the factual basis for his contention that the body and foot powders Mr. Ward used were contaminated with asbestos. (White Decl., Exh. 12 at pp.21-22.) Although

Plaintiff identified his family members and friends as witnesses with knowledge to support his claims, there is no evidence that Plaintiff's family members would have personal knowledge of whether the foot and body powders at issue were contaminated with asbestos. (Id., Exh. 13 at pp.6-7.) The discovery record contains no evidence showing that the products Mr. Ward used were contaminated with asbestos. Plaintiff's factually devoid discovery responses support an inference that he lacks and cannot reasonably obtain evidence to support his claims against CVS. Accordingly, CVS meets its initial burden on summary judgment. The burden shifts to Plaintiff.

2.

Plaintiff's Burden

Plaintiff

presents sufficient affirmative evidence to support his contention that Mr. Ward was exposed to an asbestos-contaminated product for which CVS was responsible.

Mr.

Ward testified at his deposition that he began using talcum powder to treat athlete's foot in 1987 and continued using it until 2023. (Stock Decl., Exh. A at 24:2-10.) Mr. Ward used the powder three to four times a week when he ran or every day when he had athlete's foot. (Id. at 24:11-25:1.) When Mr. Ward shook the talcum powder container to apply it to his feet, the powder formed a cloud of dust which he breathed in. (Id. at 26:13-22.) To get the powder off his hands after applying it, Mr. Ward clapped his hands together, creating another cloud of dust which he breathed in. (Id. at 28:13-25.) Mr. Ward also shook the powder into his shoes, a process that created more dust that he breathed in. (Id. at 32:9-25.) Mr. Ward recalls using Gold Bond, Dr. Scholl's Desenex, Walgreens,

and CVS brand foot powders. (Id. at 33:20-34:6 [“Q: What brands do you remember? A: ...Gold Bond. Dr. Scholl’s. Desenex, Walgreens. And CVS generic powders – foot powders. Q: When you say Walgreens and CVS generic powders, are these ones that have the name of the store—the drug store on it? A: That’s correct.”].) He used each brand equally depending on what was on sale or available, using a container of foot powder every six to eight weeks. (Id. at 34:11-22.)

Mr. Ward recalls that he began using body powder in 1987. (Stock Decl., Exh. A at 37:6-7.) Like the foot powder, Mr. Ward used body powder three to four times a week. (Id. at p.37:15-16.) When Mr. Ward applied the powder to his body, the powder formed a dust cloud that he breathed in. (Id. at 38:21-39:12, 40:21-42:11, 44:5-20.) After applying the powder, Mr. Ward clapped his hands, creating another dust cloud which he breathed in. (Id. at 45:7-46:1.) Mr. Ward used a container of body powder every six to eight weeks. (Id. at 47:16-19.) Mr. Ward used Johnson & Johnson, Gold Bond, CVS, and Walgreens body powders. (Id. 48:5-7, 11-14.) Mr. Ward recalls purchasing body powder from Pavilions, Vons, Walgreens, and CVS. (Id. at 48:18-22.) Mr. Ward knew the CVS foot and body powders were CVS store brand products because the bottles were labeled “CVS foot powder” or “CVS body powder.” (Stock Decl., Exh. A at 284:23-285:18.)

Mr. Ward confirms largely the same information from his deposition in his declaration. (Ward Decl., ¶¶2-4.)

CVS’

Person Most Qualified (“PMQ”), Elizabeth Ash testified at her deposition that “CVS doesn’t provide specification on products;” instead, it develops a product idea, like a generic lavender scented body powder, and approaches suppliers they have a relationship with, like Vi-Jon, who provides specifications. (Stock Decl., Exh. B at 10:04:26-10:04:56.) Ms. Ash also describes Exhibit 4, the SKU list for CVS brand body powders, and states that the document shows that the first scan for the CVS medicated powder by Vi-Jon (536797) is listed as January 7, 1995, which is a “dummy date” because the system does not go back further than that date and the first sale date “was likely sometime before.” (Id., at 12:00:14-12:00:48.) Thus, Ms. Ash states that CVS does not know when the item was first sold for any item whose first scan is the same date. (Id., at 12:01:37-12:02:20.) The spreadsheet Ms. Ash testifies about was created based on the products’ categories Mr. Ward testified to using. (Id., at 12:02:29-12:12:02:46.) Ms. Ash also identifies the CVS medicated body powder with SKU #329788 that was manufactured by Cumberland Swan and Vi-Jon and sold between 2005-2012. (Id., at 12:04:09-12:04:59.) However, that does not

mean that Cumberland Swan and Vi-Jon were manufacturing SKU #329788 at the same time. (Id. at 12:04:25-12:04:47.) Ms. Ash testifies that CVS kept records of all the manufacturers who made that particular SKU, including when Vi-Jon became Cumberland Swan's successor. (Id.) In other words, the manufacturer of the SKU #329788 transitioned from Cumberland Swan to Vi-Jon after Vi-Jon acquired Cumberland Swan's assets. (Id. ["A: And just a point of clarification. It wasn't necessarily manufactured by them at the same time. I think there was a relationship between Cumberland Swan and Vi-Jon, so that Vi-Jon was the successor or something...It's not their manufacturing at the same time. Those are the records of the vendors that we have for that SKU over time."].) When asked about whether Vi-Jon manufactured most of the body powders for CVS, Ms. Ash stated that "it looks like Cumberland Swan and Vi-Jon commonly manufactured CVS brand body powders prior to 2017." (Id., at 12:59:30-13:00:05.)

Vi-Jon's PMQ, Aleathea Murray, confirms that Vi-Jon sold and manufactured CVS body powder from 1999-2016. (Stock Decl., Exh. C at 84:23-25.) Vi-Jon also sold and manufactured CVS foot powder from 2012 to 2016. (Id. at 86:12-15.) All of the talcum powder Vi-Jon used in products it manufactured for its retail customers such as CVS and Walgreens was the same powder. (Id. at 97:1-9 ["Q: So the powder used in products manufactured for CVS and Rite Aid would have been the same powder that was used to manufacture products at the same time period for other retail customers such as Walmart, Target, Safeway, Albertsons or Walgreens, true?...A: Yeah, all of our formulas were – the same for our customers and our suppliers were the same."].) Ms. Murray testified that Vi-Jon is the successor to Perrigo and Cumberland Swan. (Id. at 193:4-15, 194:10-16 ["Q: And Cumberland Swan was a predecessor to Vi-Jon as we know it today, true?...A: Yeah, there was a Cumberland Swan, then a Perrigo, then a Cumberland Swan Holdings, then a Vi-Jon...Q:...So the...Cumberland Swan entities were the...predecessors to the current Vi-Jon, true?...A:...Vi-Jon took on Cumberland Swan's asset purchase agreement...from Perrigo so they go back to 1999. Q: Yeah. A: Vi-Jon's responsible for...talc from 1999 to 2016."].)

Vi-Jon obtained talc from a supplier called Luzenac, which sold talc from mines in Montana, Vermont, and China, between 1999 and 2004. (Id. at 104:2-7 ["Q: The first one is Luzenac and that would have been from approximately 1999 through 2004, correct? A: Yes. Q: And that talc came from mines located in Montana, Vermont and China, true? A: Yes."].) Vi-Jon obtained talc from another supplier called Barretts, which sold talc from China and Montana, between 2003 and 2016. (Id. at 104:8-18 ["Q: And the talc from Barretts originally came from...China and then after from a mine in Dillon, Montana, true? A: Yes, that's

true.”.) By 2014, Vi-Jon was using Microtalc BP-210 in its baby, body, and foot powders. (Id. at 262:2-22 [“A: Yeah. I saw—I see Microtalc BP-210 on there...And that was probably the one, if this is—what year is this again? Q: This is 2014. A: Yeah, that would be what we were using—Q: Okay. A: --in 2014. Q: So, the talc that Vi-Jon is utilizing in its baby, body, and foot powders, for companies like CVS, Walmart, and Walgreens, is included within this MSDS, true?...A: Our talc is identified along with...a lot of others, yes.”].)

The PMQ for Premier Brands, Patrick O'Brien, testifies that the company began making talc products when it made a generic brand foot powder for CVS in 1999 and 2000. (Stock Decl., Exh. E at 14:1-15:15.) Premier Brands's talc suppliers, Barretts and Specialty Minerals, sourced their talc from Montana. (Id. at 35:12-36:24 [“Q: Okay. Does Premier Brands of America, Inc. know the specific mines from which the talc in its products came from, for different years? A: I...all I know is what we submitted to you. So, we know who the supplier was, and I believe it had what mine it came from. But we don't have...from 2004 through '17. We had information from one of the suppliers saying that they had used the same company, for the same source, for ten-plus years. That's...the extent of what we know. Q: So, the extent of what Premier Brands of America, Inc. knows is that its talc was sourced from Barretts Minerals, and then, Minerals Technologies, and it came from Montana? A: Exactly.”].) Premier Brands continued making foot care talc products for CVS until 2017. (Id. at 41:2-8.)

Plaintiff's evidence shows that CVS body powders were supplied by Cumberland Swan and Vi-Jon before 2017. (Stock Decl., Exh. B at 12:59:30-13:00:05.) The evidence also shows that Vi-Jon manufactured body powder for CVS between 1999 and 2016. (Stock Decl., Exh. C at 84:23-25.) Although Cumberland Swan also manufactured body powder products for CVS alongside Vi-Jon, Vi-Jon acquired Cumberland Swan and thus became the primary manufacturer of body powder products for CVS by 2012 at the latest. (Stock Decl., Exh. C at 12:04:09-12:04:59.) Ms. Murray's testimony further shows that Vi-Jon's talc suppliers, Luzenac and Barretts, obtained their talc from Montana, Vermont, and China between 1999 and 2004, and China and Montana between 2003 and 2016. (Stock Decl., Exh. C at 104:2-18.) Although Ms. Murray testified that Barretts obtained its talc from China and later from a mine in Dillon, Montana between 2003 and 2016, it is unclear when this transition took place except. (Id.) At most, Ms. Murray testifies that Vi-Jon was using Barretts's Microtalc BP 210 by 2014. (Id. at 262:2-22.) Thus, Plaintiff's evidence shows that CVS body powders were made with talc sourced from China, Vermont, and Montana in various combinations between 1999 and 2016.

Vi-Jon also supplied CVS foot powders to CVS from 2012 to 2016 using the same talc suppliers, Luzenac and Barretts. (Id. at 86:12-15.) Premier Brands also manufactured CVS foot powders between 1999 and 2017 using talc supplied by Barretts and Minerals Technologies, both of which obtained their talc from Montana. (Id., Exh. E at 14:1-15:15, 35:12-36:24, 41:2-8.)

Plaintiff's geological expert, Dr. Mark Krekeler, declares that he was "asked to assume that the talc used to manufacture CVS and/or Walgreens talc-containing consumer body powder products from 2005 through 2016 was Microtalc BP-210 from Barretts Minerals (a/k/a Mineral Technologies, a/k/a Specialty Minerals) source mines in Montana. I have also been asked to assume that the talc used to manufacture CVS talc-containing foot powders from 2008 to 2012 was sourced from Barretts Minerals (a/k/a Mineral Technologies, a/k/a Specialty Minerals) mines in Montana." (Krekeler Decl. at ¶20.) Dr. Krekeler incorporates his 2023 Montana talc report into his declaration. (Id. at ¶¶21-22.) In the report, Dr. Krekeler analyzes evidence regarding the geology mineralogy, and test results for talc ore sourced from mines the "Treasure and Regal mines in southwest Montana." (Id.) Dr. Krekeler opines based on his assumptions as to the talc sources used in the CVS products at issue; his "critical review and analysis of the scientific literature, internal/historical test results, contemporary test results and information on the mining and milling processes involved"; and his "education, training and experience," Dr. Krekeler opines that to a reasonable degree of scientific certainty that CVS and Walgreens-branded body powder products manufactured between 2005 and 2016 and CVS-branded consumer foot powder products from 2008 to 2012...more likely than not contained asbestos and consumers using such products would have been exposed to asbestos." (Id. at ¶26.)

In the report, Dr. Krekeler notes that generally, "talc mines in Montana are located in one of three mountain ranges in the southwestern region of the state. These are the Ruby Range, the Greenhorn Range, and the Gravelly Range. Major talc mines in Montana include the Willow Creek Mine (The Greenhorn Range), the Regal Mine, The Yellowstone Mine (Gravelly Range), the functionally co-located Treasure Mine, Treasure Chest Mine, and Beaverhead Mine (Ruby Range)." (Krekeler Decl., Exh. 2, p. 75.) Dr. Krekeler relies on historical testing of a large swathe of mines in Montana and provides a chart reflecting the test results. (Id. at pp.174-207.) The test results show that each of the mines tested in each of three mountain ranges where talc is mined contained some amount of asbestos fiber. (Id.) Relying on these test results and studies conducted regarding

asbestos exposure to workers in the Beaverhead, Treasure, Willow Creek, and Yellowstone mines, Dr. Krekeler opines that “given the geological properties of these materials, and the geology of” these mines, it is “more probable than not that persons who used or were exposed to talc product derived from these mines” were exposed to asbestos. (Id. at p.127.) Dr. Krekeler summarizes his opinions from his report as follows:

“1.) A mature body of scientific literature exists on talc and commensurately a mature body of literature that clearly shows the association of talc and asbestos minerals in a wide range of geologic conditions also exists. Talc deposits and associated lithologies in Montana experienced conditions that would enable the formation of asbestos and related non-asbestiform minerals. Large quantities of talc have been mined from Montana since the 1940s making Montana talc a significant source.

2.) A body of government, peer-reviewed, and company literature reviewed thus far provide context for evaluating the geology of the deposits. Companies had access to this and could have developed basic geologic models to assess that talc deposits could have had asbestos or countable particles (e.g., the IWGACP December 2021 White Paper).

3.) It is scientifically much more probable than not, that asbestos occurred in talc ores from the Beaverhead, Treasure, Regal, Willow Creek, and Yellowstone Mines as well as other talc mines in Montana. The common forms of asbestos or countable particles (e.g., IWGACP December 2021 White Paper) are, or are expected to be, chrysotile and tremolite. However, forms of asbestos or countable particles of actinolite, amosite, anthophyllite, and crocidolite asbestos could be present in localized environments in talc ore, and/or could be or likely to very likely would be, derived from some associated lithologies in and around the mines. It is scientifically much more probable than not that lithologies (e.g., amphibolites, schists, mafic dikes, iron formation) adjacent to talc units in the deposits and mines contributed countable particles (e.g., IWGACP December 2021 White Paper) to talc materials through the commonly used processes of drilling, blasting, digging, White Paper) to talc materials through the commonly used processes of drilling, blasting, digging, transporting and storing ore. Evidence exists that some companies at least partially understand asbestos contributions from adjacent lithologies (e.g., The Regal Mine).

4.) A body of testing indicates findings for asbestos in multiple mines

over a period of decades.

5.) Flawed testing (e.g., powder X-ray diffraction) has been used extensively and this method of analysis does not have an adequate detection limit for the purpose of asbestos analysis. The observed records indicate that a large amount of testing was not done in a scientifically meaningful way.

6.) Based on the geological properties of these materials, It is more probable than not, that workers exposed to talc materials at and generated from Montana talc mines were exposed to asbestos.

7.) Based on the geological properties of these materials, it is more probable than not, that people or consumers exposed to talc materials at and generated from Montana talc mines were exposed to asbestos.”

(Krekeler Decl., Exh. 3, p.149.)

Dr.

Krekeler's declaration assumes that the CVS body and foot powders contained "Microtalc BP-210 from Barretts Minerals" (Krekeler Decl. at ¶2.) Plaintiff's evidence shows that Vi-Jon was using Microtalc BP-210 in its CVS body and foot powders by 2014. (Stock Decl., Exh. C at 262:2-22.) Dr. Krekeler's declaration and incorporated report fail to state that Microtalc BP-210 came from an asbestos-contaminated mine. Dr. Krekeler's report concludes that talc ores from "Beaverhead, Treasure, Regal, Willow Creek, and Yellowstone Mines as well as other talc mines in Montana" are contaminated with asbestos. (Krekeler Decl., Exh., p.2.) However, nothing in Dr. Krekeler's 200-page report, Dr. Krekeler's declaration, or the discovery record identifies where Barretts sourced the talc used in Microtalc BP-210. Although Dr. Krekeler alleges Barretts operates the Regal Mine, the Treasure State Mine, and the Barretts Mill in Montana, these facts are case-specific hearsay which Dr. Krekeler may not relay to the court. (See Sanchez, supra, 63 Cal.4th at pp.685-686.) CVS properly objected to Dr. Krekeler's declaration on the grounds that it relays case-specific hearsay.

Dr. Krekeler's report is, however, sufficient to support an inference that the CVS brand body and foot powders Mr. Ward purchased were more likely than not contaminated with asbestos because the report shows that most of the major mines in the mountain ranges where talc is mined in Montana are contaminated with asbestos. Thus, the report supports an inference that any talc sourced from Montana is more likely than not

contaminated with asbestos. This inference combined with Plaintiff's evidence that CVS's body and foot powders came from talc suppliers using Montana talc between 1999 and 2016 leads to an inference that the CVS body and foot powders Mr. Ward purchased at this time were also contaminated with asbestos.

Plaintiff also argues that his expert, Mark Bailey, confirms that Mr. Ward was exposed to asbestos from the branded products he purchased at CVS. (PAMF No.2, Stock Decl., Exh. F.) Mr. Bailey testified at his deposition that he issued analytical reports of testing he performed on 11 bottles of Gold Bond brand foot powder in 2025. (Stock Decl., Exh. F at 16:21-4.) Mr. Bailey did not detect asbestos in five of the 11 bottles tested. (Id. at p.17:12-17.) Mr. Bailey did not test Desenex products. (Id. at 18:5-13.) Like Dr. Krekeler, Mr. Bailey performed testing on the Beaverhead and Regal mines in Montana. (Id. at 18:15-22, 95:8-20.) Mr. Bailey also performed testing on bottles of Dr. Scholls foot powder and found that one bottle had chrysotile asbestos fibers and three bottles had amphibole asbestos fibers out of six bottles of the foot powder. (Id. at 94:22-95:7, 98:21-99:4.)

Mr. Bailey's deposition and report show that he performed testing on bottles of Gold Bond and Dr. Scholls foot powder. However, there is no evidence that the bottles tested contained the same talc that Mr. Ward was exposed to when he used these products between 1987 and 2023. Plaintiff provides no evidence of where the products tested came from, what year they were made, or any other details that would support an inference that the products Mr. Ward used were more likely than not contaminated with asbestos. Although Mr. Bailey alleges that the talc used in Gold Bond, Desenex, and Dr. Scholls foot powder came from the Beaverhead and Regal mines in Montana, these are case-specific facts. As CVS points out in their objections to Dr. Haber's declaration, Mr. Bailey may not relate case-specific facts to the court. (CVS's objection numbers 3, 7.) Accordingly, Mr. Bailey's report is insufficient to support an inference that it was more likely than not that the brand name talcum powder products Mr. Ward purchased from CVS were contaminated with asbestos.

Plaintiff provides sufficient evidence to support an inference that the CVS body and foot powders Mr. Ward purchased between 1999 and 2016 were more likely than not contaminated with asbestos. Plaintiff therefore meets his burden on summary judgment. The motion for summary judgment is denied on this ground.

3.

Substantial Factor

CVS next argues that “even if Plaintiff could establish that the Powder Products that were allegedly purchased from a CVS store were somehow contaminated with asbestos—and CVS maintains that Plaintiff cannot—Plaintiff’s claims against CVS would still fail because he cannot demonstrate that these likely non-existent particular exposures were a substantial factor in causing his mesothelioma.” (Motion at p.20.) Specifically, CVS argues that Plaintiff’s theory that his exposure to a CVS product was a substantial factor in causing Mr. Ward’s cancer is speculative because Plaintiff assumes that “some amount of talc at some time may have contained asbestos, Plaintiff supposes that some of the talc incorporated into the Powder Products may have contained asbestos, and further speculate that some of the containers of the unknown number of these products that Plaintiff may or may not have purchased from CVS (as opposed to other sellers) contained the supposedly contaminated talc.” (Id. at p.20, emphasis in original.)

The relevant standard to determine whether Plaintiff presents sufficient evidence to create a triable issue of material fact over whether an asbestos-contaminated talc product was a substantial factor in causing his injuries is set out in *Strobel*. In *Strobel* the court held: “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (*Strobel*, supra, 70 Cal.App.5th 796, 815.)

Here, it is undisputed that Mr. Ward used talcum powder products, including CVS body and foot powders, continuously for over three decades between 1987 and 2023. Plaintiff’s evidence that Mr. Ward purchased body and foot powders from CVS is not speculative because he provides deposition testimony and a declaration establishing that he purchased those products from CVS. (Stock Decl., Exh. A at 284:23-285:18; Ward Decl. at ¶¶2-4.) As discussed, Plaintiff’s evidence that CVS products were manufactured using asbestos-contaminated talc is not speculative because CVS’s manufacturers,

Vi-Jon and Premier Brands, testified that they used talc sourced from mines in Montana. (Stock Decl., Exh. C at 104:2-18; Exh. E at 14:1-15:15, 35:12-36:24, 41:2-8.) The expert declaration and report of Dr. Krekeler show that the major mines in the regions of Montana where talc is mined are contaminated with asbestos, leading to an inference that the talc products made with ore from Montana are also contaminated with asbestos. (Krekeler Decl., Exh. 3, p.149, 174-207.) Plaintiff's evidence meets the standard articulated in Strobel because it is undisputed that Mr. Ward used talcum powder products long term and there is expert testimony reporting positive asbestos test results for talc ores from the mines where the talc was sourced. Accordingly, Plaintiff's evidence is sufficient to support an inference that the CVS body and foot powders Mr. Ward used was a substantial factor in causing his cancer.

As for CVS's argument that Plaintiff cannot prove Mr. Ward's cancer was caused by CVS products as opposed to other sellers, Plaintiff is not required to pinpoint the exact asbestos sources that caused Mr. Ward's cancer. As the California Supreme Court explained in *Rutherford v. Owens-Illinois, Inc.* (1997) 16 Cal.4th 953, 975, which CVS cites, "asbestos plaintiffs... 'are not required to identify the manufacturer of specific fibers' that caused the cancer...Plaintiffs cannot be expected to prove the scientifically unknown details of carcinogenesis, or trace the unknowable path of a given asbestos fiber." (*Rutherford*, supra, 16 Cal.4th at p.976, emphasis in original.) Rather, "plaintiffs may prove causation in asbestos-related cancer cases by demonstrating that the plaintiff's exposure to defendant's asbestos-containing product in reasonable medical probability was a substantial factor in contributing to the aggregate dose of asbestos the plaintiff or decedent inhaled or ingested, and hence to the risk of developing asbestos-related cancer, without the need to demonstrate that fibers from the defendant's particular product were the ones, or among the ones, that actually produced the malignant growth." (*Id.*) Here, Plaintiff is not required to show that the CVS talcum powder products caused Mr. Ward's cancer as opposed to other sellers. As discussed, Plaintiff's evidence meets the standard articulated in Strobel and supports an inference that CVS's talcum powder products were asbestos-contaminated and that they contributed to Mr. Ward's risk of developing cancer. Accordingly, CVS's argument is without merit and the motion for summary judgment is denied.

C.

Motion for Summary Adjudication

CVS

moves for summary adjudication of the cause of action for negligence on the grounds that CVS did not have a duty to test or inspect the powder products it sold. (Motion at pp.22-23.) In opposition, Plaintiff argues that CVS mischaracterizes his negligence claim. Rather, "Plaintiff alleges that CVS sold foot and body powders containing asbestos — a known human carcinogen — and failed to exercise ordinary care with respect to a hazard it knew or should have known about, including by failing to warn users or recall/retrofit such products." (Opp. at p.17.)

The

complaint alleges that all Defendants, including CVS, "negligently and carelessly researched, tested or failed to test, warned or failed to warn, failed to recall or retrofit, failed to provide protective measures to prevent take home exposure, failed to warn of the dangers to those who come in contact with users, manufactured and/or caused to be manufactured, fabricated, designed, developed, labeled, assembled, distributed, supplied, leased, bought, offered for sale, sold, inspected, serviced, repaired, installed, demolished, contracted for installation, contracted others to install, repaired, marketed, warranted, rebranded, manufactured for others, packaged and advertised asbestos and/or products containing asbestos and/or products which created an asbestos hazard, and/or safety equipment..." (Compl. at ¶14.) As Plaintiff points out in opposition, summary adjudication is only appropriate where the motion "completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c, subd. (f)(1).) Here, CVS addresses one of Plaintiff's theories of negligence and fails to address the others. The motion thus fails to dispose of the entire cause of action. Accordingly, the motion for summary adjudication is denied.

IV.

Conclusion

CVS meets its initial burden to prove that Plaintiff's factually devoid discovery responses support an inference that they lack and cannot reasonably obtain evidence to support his contention that Mr. Ward was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff presented sufficient evidence in opposition to raise a triable issue of material fact over whether the CVS foot and body powders Mr. Ward used were contaminated with asbestos. Accordingly, the motion for summary judgment is denied.

CVS's motion for summary adjudication fails to completely

dispose of the negligence cause of action. CVS's motion for summary adjudication is denied.

Plaintiff to give notice.

.....

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

ANTONY WARD and JANICE WARD,

Plaintiffs,

v.

BLOCK DRUG COMPANY, et al.

Defendants.

Case No. 24STCV26629

Hearing Date: July 30, 2026

Time:

9:00 a.m.

[TENTATIVE] ORDER

RE:

WALGREEN CO.'S MOTION FOR SUMMARY JUDGMENT OR,
IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On October 11, 2024, Plaintiffs Antony and Janice Ward filed their complaint for personal injury alleging Mr. Ward developed malignant mesothelioma from direct exposure to asbestos-contaminated talcum powder products. On November 15, 2024, Plaintiffs dismissed their claims for punitive damages against Walgreens and CVS. Ms. Ward was dismissed from this action on May 13, 2025.

On February 5, 2026, Defendant Walgreen, Co. ("Walgreens" or "Defendant") moved for summary judgment or summary adjudication, arguing that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to any asbestos-containing product manufactured, distributed by Walgreens.

On July 10, 2026, Plaintiff opposed, arguing his evidence raises triable issues of material fact regarding Mr. Ward's exposure to asbestos from talc supplied by Walgreens.

On July 17, 2026, Walgreens replied, arguing Plaintiff's evidence fails to raise a triable issue of material fact to defeat summary judgment.

Walgreens meets its initial burden to prove that Plaintiff's factually devoid discovery responses support an inference that they lack and cannot reasonably obtain evidence to support his contention that Mr. Ward was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff presented sufficient evidence in opposition to raise a triable issue of material fact over whether the Walgreens foot and body powders Mr. Ward used were contaminated with asbestos. Accordingly, the motion for summary judgment is denied.

Walgreens's motion for summary adjudication fails to completely dispose of the negligence cause of action. Walgreens's motion for summary adjudication is denied.

II.

Evidentiary Objections

Defendant's objections

Sustained

1. Exhibit

D to Plaintiff's Index of Exhibits in Support of their Opposition to Walgreens's Motion for Summary Judgment or, in the Alternative, Summary Adjudication, Relevant Excerpts of the deposition of Vi-Jon's Corporate Representative, Aleathea Murray taken in the matters of Hauge v. Black Creek Corporation, et al., Second Judicial District of the State of Minnesota, County of Ramsey, File No. 62-CV 25-2361, Lynn v. Block Drug Company, Inc., et al., Alameda Superior Court, Case No. 25CV111054 and Griffin v. Allied Packing & Supply, Inc., et al., Alameda Superior Court, Case No. 25CV121914, on November 19, 2025.

This testimony is hearsay. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiff fails to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition. The objection is sustained.

3. Declaration

of Dr. Haber In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication, ¶ 8 "I am informed that Plaintiff contends that Mr. Ward was exposed to asbestos from his use of five brands of talc-based foot and body powder products: the CVS and Walgreens store brands, Gold Bond, Dr. Scholl's, and Desenex. Each of these products contained asbestos-contaminated talc. Mr. Ward regularly used these products, applying them to his feet and body, over a period spanning 1987 to 2023, and purchased each of them at CVS and Walgreens stores, among other retailers. I am further informed that these exposures resulted in his later development of malignant mesothelioma. The bases for the presence of asbestos in the talc used to manufacture these products, and in the finished products themselves, are set

forth in the opinions of Mark P.S. Krekeler, Ph.D. (as to the CVS and Walgreens store brands) and R. Mark Bailey, P.G. (as to Gold Bond, Dr. Scholl's, and Desenex), upon which I rely as described below."

The declaration states

what Haber was informed others contend and also relates case-specific hearsay.

(People v. Sanchez (2016) 63 Cal.4th 665 ["What an expert cannot do is relate as true case-specific facts asserted in hearsay statements, unless they are independently proven by competent evidence or are covered by a hearsay exception."].) In the cited portions of this declaration, Dr. Haber directly relates the facts about the talc source for CVS and Walgreens to the fact finder.

5-9. These

objections to portions of Dr. Haber's declaration are sustained for the same reasons as objection number 3.

Overruled in part

2. Declaration

of Dr. Krekeler In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication, ¶¶ 20-26.

Walgreen objects to portions

of the declaration of Dr. Krekeler on the grounds that the declaration lacks foundation, lacks personal knowledge, is speculative, and has improper basis. Although Walgreen argues that paragraphs 20-26 improperly relate portions of the deposition testimony of Gary Tomaino, only paragraph 22 and the first half of paragraph 23 contain hearsay statements quoted from the documents attached to Dr. Krekeler's declaration. Walgreen's objections to the quoted statements in paragraphs 22 and 23 are sustained.

Walgreen also objects to

the declaration on the grounds that there is no basis for Dr. Krekeler's assumption that Walgreen body powder products from 2005 through 2016 contained talc sourced from mines in Montana. However, this argument goes to the weight of Plaintiff's evidence that Walgreen's talc suppliers sourced their talc from Montana rather than the admissibility of Dr. Krekeler's opinion. The objection is overruled.

Overruled

4, 10. Declaration

of Dr. Haber In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication, ¶¶ 25-26, 32.

Dr. Haber declares in

these paragraphs that he is familiar with various articles and scientific literature on asbestos exposure from cosmetic talcum powder. (Haber Decl. at ¶¶25-26.) Dr. Haber further declares that he is aware of "medically and scientifically recognized" facts that asbestos can cause mesothelioma and that there is "no accepted threshold of exposure to asbestos above background that is incapable of causing mesothelioma." (Id. at ¶32.) Based on this knowledge, Dr. Haber opines that Mr. Ward developed mesothelioma after the appropriate latency period. (Id.)

Paragraphs 25-26 of Dr.

Haber's declaration state in general terms that he reviewed and relied on articles and other literature to form his opinions. (See Sanchez, supra, 63 Cal.4th at pp.685-686, emphasis in original ["Any expert may still rely on hearsay in forming an opinion, and may tell the jury in general terms that he did so."].) The facts Dr. Haber related in paragraph 32 of Dr. Ward's declaration, other than his opinion about Mr. Ward's exposure, are not case-specific but concern asbestos exposure and mesothelioma in general. (Id. at p.685 ["Our decision does not call into question the propriety of an expert's testimony concerning background information regarding his knowledge and expertise and premises generally accepted in his field. Indeed, an expert's background knowledge and experience is what distinguishes him from a lay witness, and, as noted, testimony relating such background information has never been subject to exclusion as hearsay, even though offered for its truth."].) Accordingly, the statements Dr. Haber made in paragraphs 25, 26, and 32 are not excluded as hearsay. The objections are overruled.

11. Declaration

of Antony Ward In Opposition to Defendants' Motions for Summary Judgment, Or, In the Alternative, Summary Adjudication in its entirety.

Walgreen objects to Mr.

Ward's declaration on the grounds that it lacks foundation, is irrelevant, and is prejudicial. Again, this objection fails to direct any objection to any

particular statement in the declaration.

Walgreen also objects on

the grounds that the declaration runs afoul of the rule articulated in *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1. The *D'Amico* rule comes into play when a party makes statements in a declaration opposing summary judgment that contradicts earlier discovery responses or deposition testimony.

When a party's admission "is obtained not in the normal course of human activities and affairs but in the context of an established pretrial procedure whose purpose is to elicit facts," this admission "is entitled to and should receive a kind of deference not normally accorded evidentiary allegations in affidavits." (*D'Amico*, supra, 11 Cal.3d at p.23.) In other words, a party may not create an issue of fact on summary judgment by a declaration which contradicts prior deposition testimony unless the contradiction is explained. (*Preach v. Monter Rainbow* (1993) 12

Cal.App.4th 1441, 1451 ["In determining whether any triable issue of material fact exists, the trial court may, in its discretion, give great weight to admissions made in deposition and disregard contradictory and self-serving affidavits of the party."]; see also *Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1502.)

Here, Mr. Ward's

declaration stating he "can unequivocally attest" that he purchased "many bottles of Walgreens-brand body powder products" between 2005 and 2016 does not contradict his earlier deposition testimony. (Ward Decl. at ¶3.) Mr. Ward previously testified that he used CVS foot and body powder between 1987 and 2023. (Stock Decl., Exh. A at 296:12-17, 290:2-16 ["Q: And you started using the Walgreens foot powder in 1987; correct? A: Yes. Q: And did you also last use the Walgreens foot powder in 2023? A: Yes.].) Even if the later declaration describes a narrower range of time, 2005 and 2016, this statement does not contradict Mr. Ward's earlier testimony. Accordingly, the *D'Amico* rule does not apply here. The objection is overruled.

III.

Discussion

A.

Legal Standard

A defendant seeking

summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In

asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where asbestos was not an

intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is “more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it.” (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter “Gibbons”].) Evidence

sufficient to support this finding includes “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

Walgreen argues that it is entitled to summary judgment because (1) Plaintiff’s factually devoid discovery responses support an inference that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing product sold by Walgreens and (2) Plaintiff can only speculate that his exposure to a Walgreen product was a substantial factor in causing his mesothelioma.

1. Defendant’s

Burden: Factually Devoid

Walgreen argues that Mr.

Ward has no proof that he purchased asbestos-contaminated products from Walgreen because he failed to provide specific testimony of the quantities of products he purchased from Walgreen, has no documents evidencing his purchases from Walgreen, and had no personal knowledge of whether the products he purchased were contaminated with asbestos. (Motion at pp.14-18 [“Critically, Plaintiff’s written discovery responses fail to set forth any specific facts demonstrating that he was exposed to asbestos as a result of using Powder Products purchased from Walgreens...As an initial matter, none of Plaintiff’s responses provide any information specific to Walgreens, such as identifying any employees, specific instances where Plaintiff or any other person purchased any Powder Products from Walgreens, any specific stores where he allegedly purchased any Powder Product from Walgreens, or any company documents...Plaintiff fails to actually identify in his discovery responses any specific ‘generic’ or ‘store brand’ talcum powder products which he contends that he obtained from Walgreens, and likewise failed to specifically identify any such products at deposition...Nor does Plaintiff have any containers of any Powder Products allegedly purchased

from Walgreens, to which he was purportedly exposed...With no bottles of said products, there can be no testing of products from Walgreens to which Plaintiff was allegedly exposed, and thus, Plaintiff lacks evidence that any of the said products from Walgreens contained asbestos.”].)

In opposition, Plaintiff

argues that they have evidence that Walgreens's talc suppliers sourced their talc from mines that were contaminated with asbestos. (Opp. at pp.15-16 [“This affirmative evidence demonstrates the existence of a triable issue of fact as to whether Plaintiff was exposed to asbestos from Walgreens supplied talcum powder products and that such exposures were sufficient to increase his risk of developing mesothelioma. Given Plaintiff's evidentiary showing, the Court cannot conclude that, as a matter of law, based upon the evidence before it, triable issues of material fact do not exist. Accordingly, Walgreens' request for summary judgment must be denied.”].)

In reply, Walgreens

argues that Plaintiff's evidence fails to establish that the particular products Mr. Ward purchased from Walgreens was contaminated with asbestos. (Reply at p.5 [“Rather than identifying admissible evidence that the particular powder products allegedly purchased by Mr. Ward from Walgreens—whether Walgreens-branded or national-brand products—contained asbestos, Plaintiff relies on generalized expert opinions concerning historical talc suppliers, mine geology, historical testing, and other products. Those opinions do not substitute for product-specific evidence.”].)

i. Analysis

Walgreens moves for summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence to support their contention that Mr. Ward was exposed to asbestos by an asbestos-contaminated product for which Walgreens was responsible. Specifically, Walgreens argues that Plaintiff's factually devoid discovery responses support an inference that they lack and cannot reasonably obtain evidence to support their claims against it. When Walgreens asked Plaintiff to state “all EVIDENCE that supports [his] contention that any TALCUM POWDER PRODUCT, sold by WALGREEN and to which [he was] EXPOSED, contained asbestos,” Plaintiff responded as follows:

“Mr. Ward was an avid runner since he moved to the United States in 1987. He ran for fitness and in competition. He ran every Los Angeles

Marathon starting in 2009, including the 2017 race in the pouring rain. He used foot powder products daily to prevent and cure athlete's foot, and to keep his feet dry and comfortable. Mr. Ward regularly inhaled asbestos dust from these products, contributing to his development of mesothelioma. He used and purchased from Defendant WALGREEN CO., the following brands of foot powder: Desenex, Dr. Scholl's, Gold Bond and Walgreen's store brands and/or generic foot powders.

...

Defendant

was aware that the level of asbestos contamination contained in its talcum powder was hazardous to human health. The source of this information is found in the medical and scientific literature available to WALGREEN, as well as WALGREEN's corporate documents, which are already in propounding Defendant's possession. In addition, despite the knowledge demonstrated in its corporate documents and/or by its employees' testimony, WALGREEN failed in all respects to adequately warn Plaintiff Antony Ward or other consumers or users and/or bystanders of the significant hazards inherent with such products."

(White Decl., Exh. 12 at pp.4-10.) The remainder of the response states that Walgreens knew its products contained asbestos and failed to warn the public of the risks of asbestos exposure, a decision motivated by financial interest. (Id.) Plaintiff incorporated his answers to interrogatory number 1 for the remainder of Walgreens's interrogatories. (Id. at pp.10-17.) Plaintiff's response to form interrogatory 17.1 identifies Mr. Ward, his family members, and friends, as witnesses who may have evidence to support their claims. (Id., Exh. 13 at pp.11-13.) Plaintiff also identified Walgreens's person most qualified, expert witnesses, and witnesses named in Mr. Ward's medical and employment records. (Id.)

Walgreens

meets its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Mr. Ward was exposed to an asbestos-contaminated product for which it was responsible. Because Plaintiff alleges that the body and foot powders at issue were made with talc contaminated with asbestos, Plaintiff's discovery responses were required to set forth facts from which the court can reasonably infer that it was "more likely than not that the talc product was contaminated with asbestos during the time" that Mr. Ward used it. (Strobel,

supra, 70

Cal.App.5th at p.815.)

Here,

Plaintiff's responses to an interrogatory seeking all facts supporting his contention that Mr. Ward was exposed to asbestos-contaminated talcum powder products supplied by Walgreens failed to state the factual basis for his contention that the body and foot powders Mr. Ward used were contaminated with asbestos. (White Decl., Exh. 12 at pp.4-10.) Although Plaintiff identified his family members and friends as witnesses with knowledge to support his claims, there is no evidence that Plaintiff's family members would have personal knowledge of whether the foot and body powders at issue were contaminated with asbestos. (Id., Exh. 13 at pp.11-13.) The discovery record contains no evidence showing that the products Mr. Ward used were contaminated with asbestos. Plaintiff's factually devoid discovery responses support an inference that he lacks and cannot reasonably obtain evidence to support his claims against Walgreens. Accordingly, Walgreens meets its initial burden on summary judgment. The burden shifts to Plaintiff.

2.

Plaintiff's Burden

Plaintiff

presents sufficient affirmative evidence to support his contention that Mr. Ward was exposed to an asbestos-contaminated product for which Walgreens was responsible.

Mr.

Ward testified at his deposition that he began using talcum powder to treat athlete's foot in 1987 and continued using it until 2023. (Stock Decl., Exh. A at 24:2-10.) Mr. Ward used the powder three to four times a week when he ran or every day when he had athlete's foot. (Id. at 24:11-25:1.) When Mr. Ward shook the talcum powder container to apply it to his feet, the powder formed a cloud of dust which he breathed in. (Id. at 26:13-22.) To get the powder off his hands after applying it, Mr. Ward clapped his hands together, creating another cloud of dust which he breathed in. (Id. at 28:13-25.) Mr. Ward also shook the powder into his shoes, a process that created more dust that he breathed in. (Id. at 32:9-25.) Mr. Ward recalls using Gold Bond, Dr. Scholl's Desenex, Walgreens, and CVS brand foot powders. (Id. at 33:20-34:6 [“Q: What brands do you

remember? A: ...Gold Bond, Dr. Scholl's, Desenex, Walgreens. And CVS generic powders – foot powders. Q: When you say Walgreens and CVS generic powders, are these ones that have the name of the store—the drug store on it? A: That's correct."].) He used each brand equally depending on what was on sale or available, using a container of foot powder every six to eight weeks. (Id. at 34:11-22.)

Mr. Ward recalls that he began using body powder in 1987. (Stock Decl., Exh. A at 37:6-7.) Like the foot powder, Mr. Ward used body powder three to four times a week. (Id. at p.37:15-16.) When Mr. Ward applied the powder to his body, the powder formed a dust cloud that he breathed in. (Id. at 38:21-39:12, 40:21-42:11, 44:5-20.) After applying the powder, Mr. Ward clapped his hands, creating another dust cloud which he breathed in. (Id. at 45:7-46:1.) Mr. Ward used a container of body powder every six to eight weeks. (Id. at 47:16-19.) Mr. Ward used Johnson & Johnson, Gold Bond, CVS, and Walgreens body powders. (Id. 48:5-7, 11-14.) Mr. Ward recalls purchasing body powder from Pavilions, Vons, Walgreens, and CVS. (Id. at 48:18-22.) Mr. Ward knew the Walgreens foot and body powders were Walgreens store brand products because the bottles were labeled with the Walgreens logo. (Stock Decl., Exh. A at 295:24-296:2.)

Mr. Ward confirms largely the same information from his deposition in his declaration. (Ward Decl., ¶¶2-4.)

Walgreens'

Person Most Qualified ("PMQ"), Cheryl Loeding, testified at her deposition that Walgreens sold branded personal care talc products (Gold Bond, Dr. Scholl's, and Desenex) and its own private label store brand of talcum powder products. (Stock Decl., Exh. B at 45:14-46:3 ["Q: Walgreens sold personal care talc products for decades, true? A: That's true. Q: Okay. And that includes national brands, like Johnson's baby powder, true? A: That is true. Q: That also includes national brands like Gold Bond, Dr. Scholl's, and Desenex, true? A: That is true. Q: And that also includes Walgreens' own private label or store brands of talcum powder products, that bear either the Walgreens name, the 'Flying W' logo, 'Well' or 'Well Beginnings' branding, or 'Studio 35,' true? A: That's true."].) Walgreens sold these personal care powder products until around 2019. (Id. at 55:18-57:5.) Walgreens first made the decision to stop selling talc products in 2016. (Id. at 57:13-2.) Vi-Jon and Perrigo, Vi-Jon's predecessor, manufactured talcum foot powders for Walgreens. (Id. at 138:14-25.) Vi-Jon was the only manufacturer that made body powders for Walgreens. (Id. at 139:13-16.) Vi-Jon manufactured body powder for Walgreens between 2002 and 2016. (Id. at 141:15-142:6.) Vi-Jon made foot powder for Walgreens between 2002 and 2005. (Id. at 142:8-14.)

Vi-Jon's PMQ, Aleathea Murray, confirms that Vi-Jon sold and manufactured Walgreens body powder from 2002-2016. (Stock Decl., Exh. C at 89:10-12.) Vi-Jon also sold and manufactured Walgreens foot powder from 2002 to 2005. (Id. at 90:6-8.) All of the talcum powder Vi-Jon used in products it manufactured for its retail customers such as CVS and Walgreens was the same powder. (Id. at 97:1-9 ["Q: So the powder used in products manufactured for CVS and Rite Aid would have been the same powder that was used to manufacture products at the same time period for other retail customers such as Walmart, Target, Safeway, Albertsons or Walgreens, true?...A: Yeah, all of our formulas were – the same for our customers and our suppliers were the same."].) Ms. Murray testified that Vi-Jon is the successor to Perrigo and Cumberland Swan. (Id. at 193:4-15, 194:10-16 ["Q: And Cumberland Swan was a predecessor to Vi-Jon as we know it today, true?...A: Yeah, there was a Cumberland Swan, then a Perrigo, then a Cumberland Swan Holdings, then a Vi-Jon...Q:...So the...Cumberland Swan entities were the...predecessors to the current Vi-Jon, true?...A:...Vi-Jon took on Cumberland Swan's asset purchase agreement...from Perrigo so they go back to 1999. Q: Yeah. A: Vi-Jon's responsible for...talc from 1999 to 2016."].)

Vi-Jon obtained talc from a supplier called Luzenac, which sold talc from mines in Montana, Vermont, and China, between 1999 and 2004. (Id. at 104:2-7 ["Q: The first one is Luzenac and that would have been from approximately 1999 through 2004, correct? A: Yes. Q: And that talc came from mines located in Montana, Vermont and China, true? A: Yes."].) Vi-Jon obtained talc from another supplier called Barretts, which sold talc from China and Montana, between 2003 and 2016. (Id. at 104:8-18 ["Q: And the talc from Barretts originally came from...China and then after from a mine in Dillon, Montana, true? A: Yes, that's true."].) By 2014, Vi-Jon was using Microtalc BP-210 in its baby, body, and foot powders. (Id. at 262:2-22 ["A: Yeah. I saw—I see Microtalc BP-210 on there...And that was probably the one, if this is—what year is this again? Q: This is 2014. A: Yeah, that would be what we were using—Q: Okay. A: --in 2014. Q: So, the talc that Vi-Jon is utilizing in its baby, body, and foot powders, for companies like CVS, Walmart, and Walgreens, is included within this MSDS, true?...A: Our talc is identified along with...a lot of others, yes."].)

Plaintiff's evidence shows that Walgreens body powders were supplied by Vi-Jon from 2002 to 2016. (Stock Decl., Exh. B at 89:10-12.) Vi-Jon also supplied Walgreens foot powders from 2002 to 2005 using the same talc suppliers, Luzenac and Barretts. (Id. at 90:6-8.)

Ms.

Murray's testimony further shows that Vi-Jon's talc suppliers, Luzenac and Barretts, obtained their talc from Montana, Vermont, and China between 1999 and 2004, and China and Montana between 2003 and 2016. (Stock Decl., Exh. C at 104:2-18.) Although Ms. Murray testified that Barretts obtained its talc from China and later from a mine in Dillon, Montana between 2003 and 2016, it is unclear when this transition took place. (Id.) At most, Ms. Murray testifies that Vi-Jon was using Barretts's Microtalc BP 210 by 2014. (Id. at 262:2-22.) Thus, Plaintiff's evidence shows that Walgreens body powders were made with talc sourced from China, Vermont, and Montana in various combinations between 1999 and 2016.

Plaintiff's geological expert, Dr. Mark Krekeler, declares that he was "asked to assume that the talc used to manufacture CVS and/or Walgreens talc-containing consumer body powder products from 2005 through 2016 was Microtalc BP-210 from Barretts Minerals (a/k/a Mineral Technologies, a/k/a Specialty Minerals) source mines in Montana. I have also been asked to assume that the talc used to manufacture CVS talc-containing foot powders from 2008 to 2012 was sourced from Barretts Minerals (a/k/a Mineral Technologies, a/k/a Specialty Minerals) mines in Montana." (Krekeler Decl. at ¶20.) Dr. Krekeler incorporates his 2023 Montana talc report into his declaration. (Id. at ¶¶21-22.) In the report, Dr. Krekeler analyzes evidence regarding the geology mineralogy, and test results for talc ore sourced from mines the "Treasure and Regal mines in southwest Montana." (Id.) Dr. Krekeler opines based on his assumptions as to the talc sources used in the Walgreens products at issue; his "critical review and analysis of the scientific literature, internal/historical test results, contemporary test results and information on the mining and milling processes involved"; and his "education, training and experience," Dr. Krekeler opines that to a reasonable degree of scientific certainty that CVS and Walgreens-branded body powder products manufactured between 2005 and 2016...more likely than not contained asbestos and consumers using such products would have been exposed to asbestos." (Id. at ¶26.)

In the report, Dr. Krekeler notes that generally, "talc mines in Montana are located in one of three mountain ranges in the southwestern region of the state. These are the Ruby Range, the Greenhorn Range, and the Gravelly Range. Major talc mines in Montana include the Willow Creek Mine (The Greenhorn Range), the Regal Mine, The Yellowstone Mine (Gravelly Range), the functionally co-located Treasure Mine, Treasure Chest Mine, and Beaverhead Mine (Ruby Range)." (Krekeler Decl., Exh. 2, p. 75.) Dr. Krekeler relies on historical testing of a large swathe of mines in Montana and

provides a chart reflecting the test results. (Id. at pp.174-207.) The test results show that each of the mines tested in each of three mountain ranges where talc is mined contained some amount of asbestos fiber. (Id.) Relying on these test results and studies conducted regarding asbestos exposure to workers in the Beaverhead, Treasure, Willow Creek, and Yellowstone mines, Dr. Krekeler opines that “given the geological properties of these materials, and the geology of” these mines, it is “more probable than not that persons who used or were exposed to talc product derived from these mines” were exposed to asbestos. (Id. at p.127.) Dr. Krekeler summarizes his opinions from his report as follows:

“1.) A mature body of scientific literature exists on talc and commensurately a mature body of literature that clearly shows the association of talc and asbestos minerals in a wide range of geologic conditions also exists. Talc deposits and associated lithologies in Montana experienced conditions that would enable the formation of asbestos and related non-asbestiform minerals. Large quantities of talc have been mined from Montana since the 1940s making Montana talc a significant source.

2.) A body of government, peer-reviewed, and company literature reviewed thus far provide context for evaluating the geology of the deposits. Companies had access to this and could have developed basic geologic models to assess that talc deposits could have had asbestos or countable particles (e.g., the IWGACP December 2021 White Paper).

3.) It is scientifically much more probable than not, that asbestos occurred in talc ores from the Beaverhead, Treasure, Regal, Willow Creek, and Yellowstone Mines as well as other talc mines in Montana. The common forms of asbestos or countable particles (e.g., IWGACP December 2021 White Paper) are, or are expected to be, chrysotile and tremolite. However, forms of asbestos or countable particles of actinolite, amosite, anthophyllite, and crocidolite asbestos could be present in localized environments in talc ore, and/or could be or likely to very likely would be, derived from some associated lithologies in and around the mines. It is scientifically much more probable than not that lithologies (e.g., amphibolites, schists, mafic dikes, iron formation) adjacent to talc units in the deposits and mines contributed countable particles (e.g., IWGACP December 2021 White Paper) to talc materials through the commonly used processes of drilling, blasting, digging, White Paper) to talc materials through the commonly used processes of drilling, blasting, digging, transporting and storing ore. Evidence exists that some companies at least partially understand asbestos contributions from adjacent lithologies (e.g.,

The Regal Mine).

4.) A body of testing indicates findings for asbestos in multiple mines over a period of decades.

5.) Flawed testing (e.g., powder X-ray diffraction) has been used extensively and this method of analysis does not have an adequate detection limit for the purpose of asbestos analysis. The observed records indicate that a large amount of testing was not done in a scientifically meaningful way.

6.) Based on the geological properties of these materials, It is more probable than not, that workers exposed to talc materials at and generated from Montana talc mines were exposed to asbestos.

7.) Based on the geological properties of these materials, it is more probable than not, that people or consumers exposed to talc materials at and generated from Montana talc mines were exposed to asbestos.”

(Krekeler Decl., Exh. 3, p.149.)

Dr.

Krekeler's declaration assumes that the Walgreens body and foot powders contained "Microtalc BP-210 from Barretts Minerals" (Krekeler Decl. at ¶2.) Plaintiff's evidence shows that Vi-Jon was using Microtalc BP-210 in its Walgreens body and foot powders by 2014. (Stock Decl., Exh. C at 262:2-22.) Dr. Krekeler's declaration and incorporated report fail to state that Microtalc BP-210 came from an asbestos-contaminated mine. Dr. Krekeler's report concludes that talc ores from "Beaverhead, Treasure, Regal, Willow Creek, and Yellowstone Mines as well as other talc mines in Montana" are contaminated with asbestos. (Krekeler Decl., Exh., p.2.) However, nothing in Dr. Krekeler's 200-page report, Dr. Krekeler's declaration, or the discovery record identifies where Barretts sourced the talc used in Microtalc BP-210. Although Dr. Krekeler alleges Barretts operates the Regal Mine, the Treasure State Mine, and the Barretts Mill in Montana, these facts are case-specific hearsay which Dr. Krekeler may not relay to the court. (See Sanchez, supra, 63 Cal.4th at pp.685-686.) Walgreens properly objected to Dr. Krekeler's declaration on the grounds that it relays case-specific hearsay.

Dr. Krekeler's report is, however,

sufficient to support an inference that the Walgreens brand body and foot powders Mr. Ward purchased were more likely than not contaminated with asbestos because the report shows that most of the major mines in the mountain ranges where talc is mined in Montana are contaminated with asbestos. Although Dr. Krekeler's declaration omits his conclusions as to the Walgreens foot powder, Ms. Murray testified that Vi-Jon used the same talc in all of the talcum powder products it made for its retail customers. (Stock Decl., Exh. C at 97:1-9.) Thus, the report supports an inference that any talc sourced from Montana is more likely than not contaminated with asbestos. This inference combined with Plaintiff's evidence that Walgreens's body and foot powders came from talc suppliers using Montana talc between 2002 and 2016 leads to an inference that the Walgreens body and foot powders Mr. Ward purchased at this time were also contaminated with asbestos.

Plaintiff also argues that his expert, Mark Bailey, confirms that Mr. Ward was exposed to asbestos from the branded products he purchased at Walgreens. (PAMF No.2, Stock Decl., Exh. E.) Mr. Bailey testified at his deposition that he issued analytical reports of testing he performed on 11 bottles of Gold Bond brand foot powder in 2025. (Stock Decl., Exh. F at 16:21-4.) Mr. Bailey did not detect asbestos in five of the 11 bottles tested. (Id. at p.17:12-17.) Mr. Bailey did not test Desenex products. (Id. at 18:5-13.) Like Dr. Krekeler, Mr. Bailey performed testing on the Beaverhead and Regal mines in Montana. (Id. at 18:15-22, 95:8-20.) Mr. Bailey also performed testing on bottles of Dr. Scholls foot powder and found that one bottle had chrysotile asbestos fibers and three bottles had amphibole asbestos fibers out of six bottles of the foot powder. (Id. at 94:22-95:7, 98:21-99:4.)

Mr. Bailey's deposition and report show that he performed testing on bottles of Gold Bond and Dr. Scholls foot powder. However, there is no evidence that the bottles tested contained the same talc that Mr. Ward was exposed to when he used these products between 1987 and 2023. Plaintiff provides no evidence of where the products tested came from, what year they were made, or any other details that would support an inference that the products Mr. Ward used were more likely than not contaminated with asbestos. Although Mr. Bailey alleges that the talc used in Gold Bond, Desenex, and Dr. Scholls foot powder came from the Beaverhead and Regal mines in Montana, these are case-specific facts. As Walgreens points out in its objections to Dr. Haber's declaration, Mr. Bailey may not relate case-specific facts to the court. (Walgreens's objection numbers 3, 7.) Accordingly, Mr.

Bailey's report is insufficient to support an inference that it was more likely than not that the brand name talcum powder products Mr. Ward purchased from Walgreens were contaminated with asbestos.

Plaintiff provides sufficient evidence to support an inference that the Walgreens body and foot powders Mr. Ward purchased between 2002 and 2016 were more likely than not contaminated with asbestos. Plaintiff therefore meets his burden on summary judgment. The motion for summary judgment is denied.

3.

Substantial Factor

Walgreens next argues that "even if Plaintiff could establish that the Powder Products that were allegedly purchased from a Walgreens store were somehow contaminated with asbestos—and Walgreens maintains that Plaintiff cannot—Plaintiff's claims against Walgreens would still fail because he cannot demonstrate that these likely non-existent particular exposures were a substantial factor in causing his mesothelioma." (Motion at p.20.) Specifically, Walgreens argues that Plaintiff's theory that his exposure to a Walgreens product was a substantial factor in causing Mr. Ward's cancer is speculative because Plaintiff assumes that "some amount of talc at some time may have contained asbestos, Plaintiff supposes that some of the talc incorporated into the Powder Products may have contained asbestos, and further speculate that some of the containers of the unknown number of these products that Plaintiff may or may not have purchased from Walgreens (as opposed to other sellers) contained the supposedly contaminated talc." (Id. at p.20, emphasis in original.)

The relevant standard to determine whether Plaintiff presents sufficient evidence to create a triable issue of material fact over whether an asbestos-contaminated talc product was a substantial factor in causing his injuries is set out in *Strobel*. In *Strobel* the court held: "long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product." (*Strobel*, supra, 70

Here,

it is undisputed that Mr. Ward used talcum powder products, including Walgreens body and foot powders, continuously for over three decades between 1987 and 2023. Plaintiff's evidence that Mr. Ward purchased body and foot powders from Walgreens is not speculative because he provides deposition testimony and a declaration establishing that he purchased those products from Walgreens. (Stock Decl., Exh. A at 48:18-22; Ward Decl. at ¶¶2-4.) As discussed, Plaintiff's evidence that Walgreens products were manufactured using asbestos-contaminated talc is not speculative because Walgreens's manufacturer, Vi-Jon, represented that it used talc sourced from mines in Montana, among other sources. (Stock Decl., Exh. C at 104:2-18; Exh. E at 14:1-15:15, 35:12-36:24, 41:2-8.) The expert declaration and report of Dr. Krekeler show that the major mines in the regions of Montana where talc is mined are contaminated with asbestos, leading to an inference that the talc products made with ore from Montana are also contaminated with asbestos. (Krekeler Decl., Exh. 3, p.149, 174-207.) Plaintiff's evidence meets the standard articulated in Strobel because it is undisputed that Mr. Ward used talcum powder products long term and there is expert testimony reporting positive asbestos test results for talc ores from the mines where the talc was sourced. Accordingly, Plaintiff's evidence is sufficient to support an inference that the Walgreens body and foot powders Mr. Ward used was a substantial factor in causing his cancer.

As for Walgreens's argument that Plaintiff cannot prove Mr. Ward's cancer was caused by Walgreens products as opposed to other sellers, Plaintiff is not required to pinpoint the exact asbestos sources that caused Mr. Ward's cancer. As the California Supreme Court explained in *Rutherford v. Owens-Illinois, Inc.* (1997) 16 Cal.4th 953, 975, which Walgreens cites, "asbestos plaintiffs... 'are not required to identify the manufacturer of specific fibers' that caused the cancer...Plaintiffs cannot be expected to prove the scientifically unknown details of carcinogenesis, or trace the unknowable path of a given asbestos fiber." (*Rutherford*, supra, 16 Cal.4th at p.976, emphasis in original.) Rather, "plaintiffs may prove causation in asbestos-related cancer cases by demonstrating that the plaintiff's exposure to defendant's asbestos-containing product in reasonable medical probability was a substantial factor in contributing to the aggregate dose of asbestos the plaintiff or decedent inhaled or ingested, and hence to the risk of developing asbestos-related cancer, without the need to demonstrate that fibers from the defendant's particular product were the ones, or among the ones, that actually produced

the malignant growth.” (Id.) Here, Plaintiff is not required to show that the Walgreens talcum powder products caused Mr. Ward’s cancer as opposed to other sellers. As discussed, Plaintiff’s evidence meets the standard articulated in Strobel and supports an inference that Walgreens’s talcum powder products were asbestos-contaminated and that they contributed to Mr. Ward’s risk of developing cancer. Accordingly, Walgreens’s argument is without merit and the motion for summary judgment is denied.

C.

Motion for Summary Adjudication

Walgreens

moves for summary adjudication of the cause of action for negligence on the grounds that Walgreens did not have a duty to test or inspect the powder products it sold. (Motion at pp.22-23.) In opposition, Plaintiff argues that Walgreens mischaracterizes his negligence claim. Rather, “Plaintiff alleges that Walgreens sold foot and body powders containing asbestos — a known human carcinogen — and failed to exercise ordinary care with respect to a hazard it knew or should have known about, including by failing to warn users or recall/retrofit such products.” (Opp. at p.17.)

The

complaint alleges that all Defendants, including Walgreens, “negligently and carelessly researched, tested or failed to test, warned or failed to warn, failed to recall or retrofit, failed to provide protective measures to prevent take home exposure, failed to warn of the dangers to those who come in contact with users, manufactured and/or caused to be manufactured, fabricated, designed, developed, labeled, assembled, distributed, supplied, leased, bought, offered for sale, sold, inspected, serviced, repaired, installed, demolished, contracted for installation, contracted others to install, repaired, marketed, warranted, rebranded, manufactured for others, packaged and advertised asbestos and/or products containing asbestos and/or products which created an asbestos hazard, and/or safety equipment...” (Compl. at ¶14.) As Plaintiff points out in opposition, summary adjudication is only appropriate where the motion “completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc. § 437c, subd. (f)(1).) Here, Walgreens addresses one of Plaintiff’s theories of negligence and fails to address the others. The motion thus fails to dispose of the entire cause of action. Accordingly, the motion for summary adjudication is denied.

IV.

Conclusion

Walgreens meets its initial burden to prove that Plaintiff's factually devoid discovery responses support an inference that they lack and cannot reasonably obtain evidence to support his contention that Mr. Ward was exposed to an asbestos-contaminated product for which it was responsible. Plaintiff presented sufficient evidence in opposition to raise a triable issue of material fact over whether the Walgreens foot and body powders Mr. Ward used were contaminated with asbestos. Accordingly, the motion for summary judgment is denied.

Walgreens's motion for summary adjudication fails to completely dispose of the negligence cause of action. Walgreens's motion for summary adjudication is denied.

Plaintiff to give notice.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA,)

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14,)

)

ANTHONY WARD and JANICE WARD,

Plaintiffs,)

v.

BLOCK DRUG COMPANY, INC., et al.

Defendants.)

Case No. 24STCV26629

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Hearing Date: July 30, 2026

Time:

9:00 a.m.

٤ [TENTATIVE] ORDER

RE:٤

DEFENDANT VI-JON, LLC'S MOTION FOR SUMMARY
JUDGMENT OR ADJUDICATION

I.

Background

On October 11, 2024, Plaintiffs Anthony and Janice Ward (collectively, "Plaintiffs") filed their complaint for personal injury alleging Mr. Ward developed mesothelioma from direct exposure to asbestos-containing talc products from March 1987 through 2017. On May 21, 2025, Mr. Ward dismissed Ms. Ward as a Plaintiff and her cause of action for loss of consortium. As against Defendant Vi-Jon, LLC ("Vi-Jon" or "Defendant"), Mr. Ward alleges that he was exposed to Defendant's asbestos-containing CVS and Walgreens store brand talc-based foot and body powder products from the late 1980's to the early 2020's through personal use.

On February 5, 2026, Defendant moved for summary judgment or summary adjudication, arguing that Mr. Ward's discovery responses were factually devoid as to specific facts supporting his alleged exposure to any asbestos-containing product for which it is responsible. Defendant further argues that it is not liable for Mr. Ward's pre-1999 or post-2016 claimed exposure, because Defendant's predecessor purchased the alleged product from PTC and Perrigo and Defendant ceased manufacturing talc powder products in 2016. Vi-Jon also moves for summary adjudication of Mr. Ward's claims for concealment, fraud, and punitive damages.

On July 10, 2026, Mr. Ward opposed, arguing that his affirmative evidence creates a triable issue of material fact as to whether Mr. Ward was exposed to asbestos from Vi-Jon supplied talcum powder products and to

sustain his cause of action for punitive damages based on Defendant's conscious disregard for the health and safety of its consumers. Mr. Ward only addresses the motion for summary adjudication as to Plaintiff's punitive damages.

On July 17, 2026, Defendant replied, arguing that Mr. Ward failed to set forth evidence that any of the products Mr. Ward used was contaminated with asbestos. Defendant also argues that although Mr. Ward advances expert opinions, Dr. Krekeler's deposition lacks foundation and is speculative and Mr. Tomaino's deposition is incomplete, unauthenticated, and inadmissible. As to the punitive damages claim, Defendant argues that Mr. Ward fails to present evidence establishing that Defendant knew or should have known its talc products contained asbestos and cannot meet the heavy burden for imposing punitive damages.

Vi-Jon

meets its burden to show that Mr. Ward lacks and cannot reasonably obtain evidence to support their claims that Mr. Ward was exposed to asbestos through an asbestos-containing product for which it is responsible. Mr. Ward, however, successfully meets his burden on summary judgment to raise a triable issue of material fact over whether Vi-Jon caused his injuries. Vi-Jon's motion for summary judgment is denied.

Mr. Ward does not address

Defendant's motion for summary adjudication as to the claims for concealment and fraud in his opposition. In addition, Vi-Jon only requests in reply that if the motion for summary judgment is denied, that, in the alternative, the court grant its motion for summary adjudication as to punitive damages; the conclusion does not mention the claims for fraud and concealment. Mr. Ward's complaint does not include any causes of action for fraud. Accordingly, Vi-Jon's motion for summary adjudication of the concealment and fraud claims are denied as moot.

Vi-Jon's motion for

summary adjudication as to Mr. Ward's claim for punitive damages is granted.

Vi-Jon satisfies its initial burden to present evidence that Mr. Ward's discovery responses pertaining to punitive damages were devoid of facts to support his contention that Vi-Jon engaged in conduct amounting to malice. Mr. Ward failed to present evidence to raise a triable issue of fact over whether Vi-Jon knew its products were contaminated with asbestos.

Vi-Jon's motion for

summary judgment is denied. The motion for summary adjudication of Mr. Ward's claims for concealment and fraud are denied as moot. The motion for summary adjudication of Mr. Ward's claim for punitive damages is granted.

II.

Evidentiary Objections

Defendant's

Objections:

Overruled

1. Mark

Krekeler's February 14, 2023 Montana Report, marked as Exhibit 2 to Mark Krekeler's July 8, 2026 Declaration ¶¶ 20-23. Dr. Krekeler attaches and incorporates by reference the opinions that he expressed in his Montana talc report from February 14, 2023. Based on this knowledge, Dr. Krekeler opined that it is more likely than not that talc sourced from the Treasure, Regal, and Yellowstone mines in southwest Montana contained asbestos and consumers exposed to talc sourced from these mines were thus likely exposed to asbestos. Vi-Jon objects to the evidence on relevance, hearsay, and authentication grounds. Dr. Krekeler, however, states in general terms that he reviewed and incorporates his report to form his opinion. (See *People v. Sanchez*, (2016) 63 Cal.4th 665, 685-686, emphasis in original ["Any expert may still rely on hearsay in forming an opinion, and may tell the jury in general terms that he did so."].) The facts Dr. Krekeler related in paragraphs 21-23 of his report are not case-specific but concern possible asbestos in talc sourced from the Southwest Montana mines and the ineffectiveness of selective mining and talc processing. (Id. at p. 685 ["Our decision does not call into question the propriety of an expert's testimony concerning background information regarding his knowledge and expertise and premises generally accepted in his field. Indeed, an expert's background knowledge and experience is what distinguishes him from a lay witness, and, as noted, testimony relating such background information has never been subject to exclusion as hearsay, even though offered for its truth."].) Dr. Krekeler is also referencing and adopting his own statements.

Vi-Jon

also objects to the declaration on the grounds that there is no basis for Dr. Krekeler's assumption that CVS & Walgreens talc powder products from 2005 through 2016 contained asbestos-contaminated talc sourced from mines in Montana. However, this argument goes to the weight of Mr. Ward's evidence that Vi-Jon sourced their talc from Montana rather than the admissibility of Dr. Krekeler's opinion. The objection is overruled.

Sustained

2. August

27, 2025 deposition transcript excerpts of Gary Tomaino, marked as Exhibit 3(a), at 113:14-21, 179:2-7, 179:9,179:22-180:6, 180:11-24, 181:8-22, and 182:1 183:13, to Mark Krekeler's July 8, 2026 Declaration ¶ 22. Mr. Ward fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Mr. Ward fails to rebut the general rule against the admissibility of former deposition testimony. (*Berroteran v. Superior Court* (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Mr. Ward offers no evidence or argument to support the admissibility of this deposition and does not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the *Berroteran* factors bear in favor of the admissibility of the deposition. Vi-Jon was not a party to the case. Accordingly, the objection is sustained.

3. August 28, 2025 deposition transcript excerpts

of Gary Tomaino, marked as Exhibit 3(b), at 240:6-11, 240:13-14, 240:16-23, 240:25, 251:6-11, 251:13-16, 258:10-18, 258:20, 258:22-260:3, 288:3-7, 288:9-14, 289:18-22, 292:15-20, 292:23-293:6, 293:8-11, 293:14, to Mark Krekeler's July 8, 2026 Declaration ¶ 22, in support of Plaintiff's Opposition. Sustained for the same reason as no 2.

4. Luzenac's

1992 IMERYS 416215, marked as Exhibit 4, to Mark Krekeler's July 8, 2026 Declaration ¶ 23, in support of Plaintiff's Opposition. This document is an out-of-court statement used to prove that "mine operators recognized that selective mining techniques could not prevent actinolite from reaching the final product." In addition, the document is dated November 4, 1992, years before the relevant time period at issue here. The objection is sustained.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (*Id.* at p. 855.) “If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.” (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1440.)

The court is required to view the evidence in the light most favorable to Plaintiffs as the nonmoving party and “liberally construe plaintiff[s] evidentiary submissions and strictly scrutinize defendant[s] own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff[s] favor.” (*McDonald v. Antelope Valley Community College Dist.* (2008) 45 Cal.4th 88, 96–97.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff

must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where asbestos was not an intended ingredient in a talc product, plaintiffs bear the additional burden of showing that it is “more likely than not that the talc product was contaminated with asbestos during the time the plaintiff used it.” (LAOSD Asbestos Cases (2020) 44 Cal.App.5th 475, 489 [hereinafter “Gibbons”].) Evidence sufficient to support this finding includes “long term use of a talcum powder product alleged to contain asbestos by a mesothelioma sufferer who was not exposed to any other known source of asbestos above background asbestos levels that are ever-present in the environment, together with expert testimony reporting positive test results for the presence of asbestos in ore from the sources used to manufacture the product.” (Strobel v. Johnson & Johnson (2021) 70 Cal.App.5th 796, 815.) “In the absence of evidence explaining how asbestos in the source ore would have been eliminated in the process of mining and then milling talc, that is enough to support more than a mere possibility that the accused product... was a substantial factor in causing [plaintiff] to develop mesothelioma.” (Ibid.)

1.

Defendant’s Burden: Factually Devoid

Vi-Jon

moves for summary judgment on the grounds that Mr. Ward lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing product for which Defendant is responsible. Specifically, Vi-Jon argues that Mr. Ward’s discovery responses are factually devoid of evidence that Vi-Jon exposed Mr. Ward to an asbestos-containing product which Vi-Jon was responsible for:

“Plaintiff Antony

Ward testified that from 1987 to 2023 he personally used various brands of foot powder, baby powder and body powders; specifically, five brands of foot powders: CVS generic, Walgreens generic, Desenex, Gold Bond, and Dr. Scholl's as well as four types of body powders: CVS generic, Walgreens generic, Johnson & Johnson, and Gold Bond. (UMF No. 7) He further testified that no individual witnessed his personal use and application of these various powder products. (UMF No. 8) Plaintiff Antony Ward testified he has a general memory that he first used a powder product in 1987, has a general memory he last used a powder product in 2023, and has a general memory of having the same powder application routine; however, he could not provide specific dates of use for each of the various products, nor could he distinguish his product use by specific brand without speculating. (UMF No. 9) Plaintiff Antony Ward did not recognize defendant [Vi-Jon] and stated he communicated with no person believed to be an employee or representative of Vi-Jon. (UMF No. 11) Finally, Plaintiff Antony Ward testified he has never had any bottle of talcum powder he personally used tested for asbestos.

When called upon to "state all facts" supporting their claims against Vi-Jon, plaintiff could only muster speculation, argument and contentions, unsupported by foundational facts. (UMF Nos. 3-5.)"

(Motion at pp. 19-20.)

In opposition, Mr. Ward argues that Vi-Jon failed to shift its burden on summary judgment because his "affirmative evidence demonstrates the existence of a triable issue of material fact as to whether he was exposed to asbestos from Vi-Jon supplied talcum powder products." (Opp. at p. 12.) Mr. Ward specifically argues that the evidence shows:

- "Mr. Ward used CVS and Walgreens store-brand foot powder and CVS and Walgreens store brand body powder continuously from 1987 through 2023. As relevant here, he confirmed that he purchased numerous bottles of CVS-brand and Walgreens-brand body powders from 2005 to 2016, and that he was exposed to dust from using those bottles hundreds, if not thousands of times.

- CVS confirmed that Vi-Jon was the only known supplier of the CVS body powder products Mr. Ward

identified using from 2005 through 2012 and the primary supplier of those products from 2012-2016. Walgreens confirmed that Vi-Jon was the only supplier of talcum-powder based Walgreens body powders from at least 2002 to 2016.

· Mr. Ward applied

talcum powder products three to four times per week throughout the 1987 2023 period—every time he ran, and daily during episodes of athlete's foot. He applied all of the products in the same manner and with the same frequency as every other brand. The routine generated a visible “cloud of dust” at multiple points and Mr. Ward breathed that dust.

· Mr. Ward purchased

a new bottle of foot powder and a new bottle of body powder approximately every six to eight weeks, or roughly eight bottles of each per year, across the 36-year period—approximately 288 bottles of foot powder and 288 bottles of body powder in total. Apportioning his use equally across brands, Mr. Ward's own testimony places his use of CVS and Walgreens store-brand foot powder products at approximately 57 to 58 bottles each and approximately 72 bottles each of CVS and Walgreens body powder over the period.

· Plaintiff's

geology and minerology expert, Mark Krekeler, Ph.D., has confirmed, within a reasonable degree of scientific certainty, that the Vi-Jon supplied CVS and Walgreens body powder products manufactured between 2005 and 2016 more likely than not contained asbestos and that consumers, like Mr. Ward, using such products would have been exposed to asbestos from their use of such products.

· Finally, Mr. Ward

confirmed that none of the talcum powder products he purchased from CVS or Walgreens ever contained any warning that the talc could contain asbestos and that had any such warning been present he would not have purchased or used the product.”

(Opp. at pp.
11-12.)

Vi-Jon

argues that Mr. Ward's responses to comprehensive written discovery failed to include information about the asbestos content of the products Mr. Roberts worked with. When asked to identify each and every product type and name Mr.

Ward alleges Vi-Jon supplied that he personally used or was used in his presence, Mr. Ward responded in relevant part:

“Plaintiff ANTONY

WARD was exposed to Defendant VI-JON's CVS and Walgreen store brand talc-based powder products beginning in approximately the late 1980's through the early 2020's several times per week as part of his regular personal hygiene and fitness routine as he is a long distance runner (Deposition of Antony Ward, Volume 1, at pgs. 23:19-24:14; 33:24-34:1; 37:15-16). Mr. WARD was exposed to CVS and Walgreen store brand talc-based powder products in the various communities where he resided, including but not limited to, in the areas of Los Angeles County and San Bernardino County, California (Deposition of Antony Ward, Volume 2, at pgs. 309:14-310:11).

Mr. WARD twisted

the top of the shaker containers to open the holes, inverted the containers, and shook the powder against and through the holes (Vol. 1, at pgs. 25:2-26:10). For Mr. WARD's personal use of talc-based powder products, he would apply it to his hands and then directly to his arm pits and groin as well as to his bare feet and within his shoes (Vol. 2, at pgs. 206:15-207:6). The design and intended use of this product caused powder to become airborne in his immediate breathing zone, where he could not reasonably avoid inhaling it (Vol. 1, at pgs. 49:14-50:6). On information, including the evidence listed in the chart below, and belief, Vi-Jon's talc was sourced from mines whose talc contains asbestos, asbestiform fibers, and asbestiform talc. The company documents of Vi-Jon's talc suppliers and other cosmetic talc manufacturers show the presence of such carcinogens in the same mine sources...

Plaintiff has not

completed investigation of the facts relating to this case, has not completed discovery in this action and has not completed preparation for trial; the previous answer is given without prejudice to his right to produce evidence of any subsequently discovered facts.”

(Index, Exh. D at
pp. 4-5, 16.)

In addition, Vi-Jon propounded special
interrogatory no. 3 on Mr. Ward, asking him to “IDENTIFY ALL PERSONS with
product identification personal knowledge upon which you base YOUR contention

that YOU inhaled asbestos fibers that YOU claim were released from products designed, mined, milled, manufactured or distributed by VI-JON.” (Index, Ex. D at p. 21 [emphasis in original].) Mr. Ward’s response reads in pertinent part:

“Plaintiff

identifies himself, his family members, friends, and any other persons that were present when Plaintiff ANTONY WARD used and was around Defendant’s asbestos containing products.”

(Ibid.

[emphasis in original].)

When

asked to state “all facts” supporting his assertions that Vi-Jon engaged in malicious, oppressive, or fraudulent conduct, Mr. Ward responded in pertinent part:

“With respect to

Plaintiff’s claims against propounding party (only), Plaintiff incorporates by reference as if fully set forth herein his response to Interrogatory No. 1, supra.

Plaintiff has not

completed investigation of the facts relating to this case, has not completed discovery in this action, and has not completed preparation for trial; the previous answer is given without prejudice to his right to produce evidence of any subsequently discovered facts.”

(Id.,

at p. 23.)

In

addition, when asked to produce all documents that support Mr. Ward’s claim that he was exposed to an asbestos-containing product for which Vi-Jon was allegedly responsible for and supplied and that reflect or evidence the dates Mr. Ward contends he was exposed, Mr. Ward responded in pertinent part:

“Plaintiff

identifies the depositions of Plaintiff ANTONY WARD taken in this matter on June 12, 2025, and June 19, 2025, and any/all exhibits attached thereto.

Plaintiff identifies his Responses to Special Interrogatories propounded by Defendant and any attached exhibits and documents referenced therein. Plaintiff identifies Plaintiff's medical, personal, and employment records referenced within General Order Standard Asbestos Case Interrogatories, including any supplemental responses, and particularly all exhibits attached thereto and referenced therein, including Plaintiff's Authorizations for the release of Mr. WARD's medical records, employment records, and Social Security records. Authorizations for the release of Mr. WARD's records have been provided to Defendant, and records are available through Lexitas, 7700 Irvine Center Drive, Suite 450, Irvine, CA 92618. Plaintiff has no summaries or indices of these documents; hence, the burden of summarizing and indexing these documents is the same as or equal to Defendant as to Plaintiff.

Plaintiff

identifies expert witnesses that Plaintiff has retained, provided depositions, declarations and trial testimony that exposure to the asbestos-containing materials described above, when inhaled, causes injury. This testimony is based on, among other things, work experience, testing, research, studies and review of manufacturer Defendant's admissions that their products contained asbestos during all relevant times to this action. Plaintiff expects that their experts, when designated in compliance with California Code of Civil Procedures §2034.210, will testify in accordance with their past testimony. Defendant and Defendant's counsel are well aware of this testimony.

Plaintiff refers

Defendant to all documents produced by and through deposition or trial Plaintiff refers Defendant to previous statements—including testimony, the transcripts thereof, and exhibits thereto—of persons testifying that Defendant marketed asbestos or an asbestos-containing product where asbestos was present. Plaintiff further refers Defendant to all discovery responses—including Requests for Admission, Requests for Production, and Interrogatories (including Standard Interrogatories, Special Interrogatories, and Form Interrogatories)—provided by Plaintiff in such matters. These documents and deposition transcripts are equally available to and in the possession of Defendant. Plaintiff has no summaries or indices of these documents; hence, the burden of summarizing and indexing the same is equal to Defendant as to Plaintiff...

Plaintiff has not

completed investigation of the facts relating to this case, has not completed discovery in this action and has not completed preparation for trial; the

previous answer is given without prejudice to his right to produce evidence of any subsequently discovered facts.”

(Index,
Exh. F, at pp. 5-6, 9.)

Vi-Jon

also submits Mr. Ward's deposition taken for this case on December 4, 2025. (Index, Exh. G.) Mr. Ward states that in previous testimony, he testified that from 1987 to 2023 he used CVS and Walgreens generic foot and body powders as well as three other brands, and that no other person was present in the bathroom when he applied said powders nor was he in the presence of others when they personally applied the products. (Id., at p. 382-383.) Mr. Ward also recalls using the CVS foot and body powder in 1987: “I was in the bathroom, I applied it, turned the bottle upside down, took the top off, shook the powder into my hand, rubbed it under my armpits, rubbed it in my groin, shook the bottle and I applied it to my feet.” (Id., at p. 384:17-385:19.) Mr. Ward states he has the same memory as when he used the CVS foot powder for the last time around 2023 when he ran the Long Beach marathon. (Id., at p. 387.) However, when questioned further, Mr. Ward states that he “bought different types of talcum powder. It could have been CVS. It could have been Walgreens. It could have been one of the others. But I used all of the powders equally.” (Id., at p. 390:15-18.) Mr. Ward admits that he “generally believe[s] [he] may have used CVS foot powder along with the other four talcum foot powders [he had] identified, but cannot tell [the deposer] specific dates of use for each product.” (Id., at p. 392:8-12.) As to the Walgreens powders, he testified that he used the same routine described above and that he used the Walgreens powders about six to eight weeks after using the CVS powders. (Id., at pp. 398-399.)

Mr.

Ward also testified that he had never personally, orally, or through writing communicated with a representative or employee of Vi-Jon. (Id., at p. 404:14-21.) In the same vein, Mr. Ward stated that he lacks personal knowledge or information that a Vi-Jon employee or representative ever acted with an intent to harm him, with malice, fraud, oppression, or a conscious disregard for his safety. (Id., at p. 405:10-23.) Mr. Ward also states that he lacks personal knowledge or information that Vi-Jon made any false representation or intentionally withheld or failed to disclose material facts. (Id., at p. 405-406.)

Mr. Ward's discovery responses and Vi-Jon's evidence give rise to an inference that Mr. Ward lacks and cannot reasonably obtain evidence to support his claim that he was exposed to an asbestos-containing product for which Vi-Jon was responsible. Mr. Ward's discovery responses were required to provide a factual basis to show he used Vi-Jon's supplied products and that these products contained asbestos. (Turley, supra, 18 Cal.App.5th at p. 980; Collin, supra, 228 Cal.App.4th at p. 593.) Mr. Ward's responses to written discovery fail to specify a particular Vi-Jon product that exposed him to asbestos. (Index., Exhs. D, F, & G.) Although discovery responses and deposition testimony identify that Mr. Ward used CVS and Walgreens generic brand body and foot talc powders, the evidence fails to establish that those products contained asbestos. (Ibid.) The discovery record thus lacks facts establishing the Vi-Jon products used in a personal capacity by Mr. Ward exposed him to asbestos. The lack of facts supports an inference that Mr. Ward lacks and cannot reasonably obtain evidence to support his claims against Vi-Jon.

Accordingly,

Vi-Jon satisfies its burden on summary judgment. The burden shifts to Mr. Ward.

2.

Plaintiff's Burden:

Mr.

Ward argues that the evidence shows that he used CVS and Walgreens generic brand foot and body powder continuously from 1987 to 2023, that Vi-Jon was the only known supplier for both CVS (2005-2012) and Walgreens (2002-2016) powder products, and that Dr. Krekeler confirmed within a reasonable degree of scientific certainty that the Vi-Jon supplied powder products manufactured between 2005-2016 more likely than not contained asbestos. (Opp. at pp. 11-12.)

Mr.

Ward's exhibit "A" consists of his deposition testimony from June 12, 2025. Mr. Ward states that he first learned how to use talc foot powder in 1987 on a cruise ship and a cabin mate told him it helps with athlete's foot. (Index, Exh. A, at p. 24:8-24.) While describing his application method, Mr. Ward states that he breathed in "a cloud of dust" of the product because he could see the dust in the air and he could taste it in the back of his throat; he also stated that there is no way to avoid the dust based on the products design. (Id., at pp. 26:1-27:3.) Mr. Ward also described breathing in this

“cloud of dust” each time he would finish applying the product to both feet after clapping his hands to clean them and after placing the products in his shoes for odor-control. (Id., at pp. 28:1-32:25.) Furthermore, Mr. Ward stated that he remembers using Walgreens and CVS generic foot powders, and that each container would last him about six to eight weeks. (Id., at p. 34:2-22.) He used these products consistently from 1987 to 2023 and knew they contained talc because of the white dust clouds. (Id., at pp. 35:19-36:6.) Mr. Ward testifies that if he had seen a warning specifying that talc may contain asbestos, he wouldn’t have bought the products. (Id., at pp. 36:11-37:1.) As to the body powders, Mr. Ward states that he used the CVS and Walgreens brand with the same frequency, during the same time period, and with the same application method as the foot powders. (Id., at pp. 37:2-48:7.) Mr. Ward also states that he bought both white talcum powders from CVS and Walgreens stores in California after 1986. (Id., at p. 49:17-21.)

Later

in the deposition, Mr. Ward states that he used both powder products two to four times a week, and that he used CVS white talcum foot and body powder, which was a white bottle with the CVS logo, from 1987-2023. (Id., at pp. 284:6-285:24, 290:2-293:10 [“Body powder, CVS body powder, that’s what is said on the bottle...was a white bottle...it wasn’t a name brand...it said CVS foot powder, body powder.”].) He provides similar information regarding the Walgreens powder products. (Id., at pp. 294:19-296:17, 300:13-24 [“It said Walgreens foot powder or Walgreens body powder...Walgreens body powders is what is said on the bottle...the logo was on there...it was a red – red cursive, Walgreens.”].) Mr. Ward also specifically remembers purchasing from the “CVS store on Lincoln in Santa Monica Boulevard and the Walgreens on “20th Street and Wilshire in Santa Monica,” California. (Id., at pp. 304:19-305:2.) As to a rough estimate of how many bottles of foot and body powder of each brand he used, Mr. Ward agrees that the number is about 57-58 bottles of foot powder and 72 bottles of body powder based on his usage frequency. (Id., at pp. 358:1-359:6.)

Exhibit

B consists of the deposition of CVS’ Person Most Qualified, Elizabeth Ash, taken in the present matter on May 29, 2026. (Index, Exh. B.) Ms. Ash states that “CVS doesn’t provide specification on products;” instead, it develops a product idea, like a generic lavender scented body powder, and approaches suppliers they have a relationship with, like Vi-Jon, who provides specifications. (Id., at 10:04:26-10:04:56.) Ms. Ash also describes

Exhibit 4, the SKU list for CVS brand body powders, and states that the document shows that the first scan for the CVS medicated powder by Vi-Jon (536797) is listed as January 7, 1995, which is a "dummy date" because the system does not go back further than that date and the first sale date "was likely sometime before." (Id., at 12:00:14-12:00:48.) Thus, Ms. Ash states that CVS does not know when the item was first sold for any item whose first scan is the same date. (Id., at 12:01:37-12:02:20.) The spreadsheet Ms. Ash testifies about was created based on the products' categories Mr. Ward testified to using. (Id., at 12:02:29-12:12:02:46.) Ms. Ash also identifies the CVS medicated body powder with SKU #329788 that was manufactured by Cumberland Swan and Vi-Jon and sold between 2005-2012. (Id., at 12:04:09-12:04:59.) When asked about whether Vi-Jon manufactured most of the body powders for CVS, Ms. Ash stated that "it looks like Cumberland Swan and Vi-Jon commonly manufactured CVS brand body powders prior to 2017." (Id., at 12:59:30-13:00:05.)

Mr.

Ward also submits the deposition of Walgreens' Person Most Qualified, Cherly Loeding, taken in the present matter on June 24, 2026. (Index, Exh. C.) Ms. Loeding states that Walgreens sold personal care talc products for decades, including its own generic brand. (Id., at pp. 45:12-46:3.) Ms. Loeding began working at Walgreens as an associate manager in the private label owned brand, beauty and personal care division in August 2013, during which time she was involved in decision-making relating to talc powders. (Id., at pp. 64:19-65:2.) Between 2015 and 2026, Ms. Loeding was promoted and laterally moved throughout the company multiple times, including working as a senior manager in the beauty and personal care department and the divisional merchandise manager overseeing beauty and personal care. (Id., at pp. 65:3-66:11.) Ms. Loeding states that "for the private label or owned-brand talc products, Walgreens has utilized the Walgreens name for those products," including the Walgreens name, the red cursive script, the "Flying W," the "Well at Walgreens," and "Studio 35" branding. (Id., at pp. 73:12-74:9.) Ms. Loeding also stated that Walgreens did not specify on raw ingredients, like needing to use 90 percent talc versus 90 percent pure talc, when contracting with suppliers, like Vi-Jon, and had never tested or ordered the testing of any of the generic finished powder products for asbestos because it relied on its manufacturers. (Id., at pp. 96:23-97:10.) Ms. Loeding also confirmed that Vi-Jon manufactured talcum foot powders and exclusively manufactured talcum body powders for Walgreens. (Id., at pp. 138:14-139:16.) Lastly, looking at an Exhibit of Vi-Jon's responses to Plaintiff's SROGs, Set Two, in a previous matter, Ms. Loeding confirms that Vi-Jon manufactured Walgreens body

powder from at least 2002-2016 and Walgreens foot powder from at least 2002-2005. (Id., at pp. 140:2-142:14.)

Exhibits

D-F consist of the declarations of Vi-Jon's Person Most Qualified, Aleathea Murray, taken in the present matter on April 21, 2026, in the matters of Hauge v. Black Creek Corporation, et al., Second Judicial District of the State of Minnesota, County of Ramsey, File No. 62-CV-25-2361, Lynn v. Block Drug Company, Inc., et al., Alameda Superior Court, Case No. 25CV111054 and Griffin v. Allied Packing & Supply, Inc., et al., Alameda Superior Court, Case No. 25CV121914, taken on November 19, 2025, and in the matter of Maricich v. Chattem, Inc., et al., Alameda Superior Court, Case No. 25CV116787, taken on June 24, 2025. (Index, Exhs. D-F.)

In

the present matter, Ms. Murray was shown an exhibit that is identified as a material safety data sheet for talc from Mineral Technologies aka Barretts Minerals to Vi-Jon from August 14, 2007, which she confirms indicates that talc "is considered hazardous under 29 CFR 1910.1200," identifies talc specifically as appearing on California's hazardous substances list, and has a Prop 65 warning. (Index, Exh. D, at pp. 230:22-232:25.) However, Ms. Murray states that "a lot of [the information] does not apply to us, because we chose cosmetic" talc, not industrial. (Id., at p. 233:2-3.) Ms. Murray is then shown exhibit 22, an authenticated November 2014 Vi-Jon safety data sheet, which she confirms does not contain the Prop. 65 or state hazardous lists language from the previous exhibit, and "actually...says that this product does not contain any Prop 65 chemicals." (Id., at pp. 258:13-259:12.) Exhibit 23, a 2015 Minerals Technologies MSDS, is confirmed to state the talc is listed as a Class 1A carcinogen, but Ms. Murray once again states the section is not applicable to Vi-Jon because it only bought cosmetic talc. (Id., at pp. 260:2-261:21) Ms. Murray states that Vi-Jon was using "Microtalc BP-210" in its baby, body, and foot powders supplied to companies like CVS and Walgreens, which "is identified along with a lot of others" on the 2015 MSDS. (Id., at p. 262:2-22.)

Ms.

Murry confirms that while there is not a "carve-out" indicating the warning is applicable only to industrial talc, this is "general knowledge" for Vi-Jon. (Id., at pp. 263:23-264:8.) Ms. Murry also confirms that in the same exhibit, specific hazards associated with talc are identified, including "may cause cancer (inhalation)" and "[c]hronic, health effects may result from repeated

overexposure,” and a warning “Do not breath dust.” (Id., at pp. 264:12-265:25, 267:2-6.) Ms. Murray states that it is “pretty common sense on any dust...[that] people would [not] want to breath it,” while also acknowledging that “I don’t know any way” for someone to “utilize body powders, in the manner that they are intended, without breathing dust.” (Id., at p. 265:4-18.) Exhibit 25 is identified to be another technical data sheet specifically for the Microtalc B-210 at issue here that contains another disclaimer. (Id., at pp. 271:21-272:2.) Exhibit 27, a Vi-Jon safety data sheet for baby powder from May 31, 2016, a few months before Vi-Jon stopped making and selling talc powder products, identifies “talc as a Class 2B carcinogen” based on a Barretts MSDS “that told [Vi-Jon] it went from 3 to 2B.” (Id., at pp. 272:13-274:25.) Ms. Murray states that “this MSDS contain[ed] all of this information from IARC, and NTP, and the FDA, when no other MSDS prior to this contained that information,” because Vi-Jon “found out about this change [changed from 3 to 2B] in the IRAC” in 2016. (Id., at pp. 274:19-275:5.) Lastly, Ms. Murray confirms that every single one of the Barretts’ MSDS discussed above identified BP-210 and included the Prop. 65 language. (Id., at p. 276:7-23.)

In

the matters of Hauge v. Black Creek Corporation, et al., Second Judicial District of the State of Minnesota, County of Ramsey, File No. 62-CV-25-2361, Lynn v. Block Drug Company, Inc., et al., Alameda Superior Court, Case No. 25CV111054 and Griffin v. Allied Packing & Supply, Inc., et al., Alameda Superior Court, Case No. 25CV121914, taken on November 19, 2025, Ms. Murray testifies that Vi-Jon sourced raw talc from two suppliers: “Imerys Talc America, Inc. (formerly known as Luzenac America, Inc.) (hereinafter ‘Luzenac America’) (approximately 1999 to 2004) and Barretts Minerals, Inc. (hereinafter ‘Barretts’) (approximately 2003 to 2016).” (Index, Exh. E, at p. 28:3-22.)

The talc sourced from Luzenac came from mines in Montana, Vermont, and the talc from Barretts came from mines located in the Liaoning or Guangxi provinces in China and in Dillon, Montana. (Ibid.) Furthermore, from 2005 to 2016, Vi-Jon’s talc supplier was Specialty Minerals, specifically BP210 from Dillon, Montana. (Id., at p. 37:16-25.) From 2004 to 2005, Vi-Jon used “the Chinese talc.” (Id., at p. 38:19-23.) Ms. Murray confirmed that “regardless of customer, Target v. Walmart or verse Walgreens,” Vi-Jon uses the same talc. (Id., at p. 39:9-13.) Thus, Ms. Murray states that for the body and baby powder supplied to Walgreens, “it would be Imerys Supply of Montana, Vermont, and China talc from 2000 to 2004, and then Specialty Minerals supply of either Chinese or Montana talc from 2005 to 2016.” (Id., at pp. 39:14-40:7.) As to Vi-Jon’s return policy, Ms. Murray states that Defendant

“always had a return policy. [The product] would go from the retailer back to Vi-Jon if – if there was an issue, quality issue or anything.” (Id., at p. 98:7-18.)

Lastly,

in the matter of Maricich v. Chattem, Inc., et al., Alameda Superior Court, Case No. 25CV116787, taken on June 24, 2025, Ms. Murray testifies that based on the evidence Vi-Jon could find, it has sold outsourced talc powder products starting from 1992. (Index, Exh. F, at p. 20:5-23.) She further states that when Vi-Jon began producing the products, it “knew that there was potential for asbestos being in the vicinity of talc; therefore, we always required cosmetic grade versus industrial grade.” (Id., at p. 48:4-14.) Vi-Jon apparently knew about the connection between talc and asbestos in the late 1970s because it was “general knowledge” and said knowledge is why Defendant “always wanted cosmetic grade because of those, you know, asbestos and – and talc being mined closely together.” (Id., at p. 82:10-18.) Ms. Murray also states that Vi-Jon “would not have communicated anything to [customers] about asbestos unless asked.” (Id., at p. 83:3-12.) As to asbestos’ carcinogen status, Ms. Murray declares that in the 1990s, Vi-Jon “knew that asbestos was a carcinogen, and [it] knew that it was mined near talc, and that’s the reason we always required the cosmetic grade versus industrial grade.” (Id., at pp. 97:20-98:6.) As to talc’s carcinogen status, Ms. Murray states that “when we were using talc, it – IRAC changed to put possible carcinogen, and it was related to perineal use. That was in 2016, but until then, it was...like an IRAC rating of 3, so that’s when we got out of the business is when we saw it move from 3 to 2 to B. (Id., at pp. 119:17-120:12.) However, Ms. Murray states that Vi-Jon “found nothing in our product.” (Id., at 120:10.) Ms. Murray also testifies that in 2007, a customer emailed Vi-Jon about talc asbestos and cancer. (Id., at p. 269:2-10.)

The

deposition then turns to questions about Mark Berry, a product manager at Vi-Jon in 2007 who was involved with talc products. (Id., at pp. 270:7-271:25.) Ms. Murray is asked to look at a February 23, 2007 email exchange (exhibit 29) between Mr. Berry and Catarina Groman, who was a worker at Loblaw Brands Limited in their health and beauty products department, which Ms. Murray was also cc’d on; Loblaw was Vi-Jon’s importer of record for Canada and received talc powder products from Vi-Jon. (Id., at pp. 272:4-273:21.) Ms. Murray confirms that the email identifies a customer who was inquiring about “the possible connection between talc and asbestos or cancer.” (Id., at p.

275:14-20.) Ms. Murray also confirms that Mr. Berry responded internally on the same day that “[h]ow we respond to this inquiry could have an impact on the business we are developing with Loblaw in other categories. Let's make sure it is a positive impact[!]” (Id., at pp. 275:10-277:6.) Ms. Murray testifies that Mr. Berry does not say to make sure to tell the truth, nor does he “say [to] warn our customers, because [Vi-Jon] had no reason to warn our customers, to be honest.” (Id., at p. 277:7-24.) Then looking at Paul Ritz’s internal response, who was a VP of sales for Vi-Jon, Ms. Murray confirms that Mr. Ritz “says Mark’s PS response is correct” and that “[w]e’ve received acceptance for four new PL exact label productions. Three NW and one citrate, and we don’t anything to negatively impact that.” (Id., at pp. 279:25-280:18.) In addition, Ms. Murray states that in this same email chain, Vi-Jon’s “regulatory person who didn’t like to be rushed, he didn’t like to be pushed, I knew him personally, and he’s -- he was saying quiet people down, and some unfortunate language just because he did not like to make quick decisions and quick studies, and like I said, he used some very unfortunate language.” (Id., at p. 282:4-22.)

Looking

at the same email chain in a different exhibit (exhibit 30), Ms. Murray confirms that Deborah from Vi-Jon left Ms. Groman a voicemail regarding her email and that Ms. Groman then emailed Ms. Murray about customers’ inquiries into the link between talc products and cancer 40 minutes later. (Id., at p. 283:2-285:9.) Ms. Murray then confirms that Craig Porter, the aforementioned director of regulatory affairs at Vi-Jon in 2007, responds the following to this chain:

“‘Apparently we have several parties involved in this issue, Loblaw and Newco. The responses in documentation are attached. However, it is anticipated that we have to prepare[] a formal statement. The response and supporting documentation is included here and I would appreciate it if you could use this information to quiet the barking dogs while we prepare a formal statement if necessary.’”

(Id.,
at pp. 286:2-287:9.)

In addition, Ms. Murray confirms that in 2007, “Vi-Jon knew that talc containing asbestos fibers is a human carcinogen.” (Id., at p. 313:1-9.) Ms. Murray also states that looking

at exhibit 32, Vi-Jon's 2008 MSDS for baby powder, Vi-Jon included a legal disclaimer that it "makes no representation as to the completeness or accuracy thereof and information supplied upon the expressed condition that the persons receiving the information will be required to make their own determination as to its suitability for their purposes prior to use." (Id., at pp. 313:3-314:16.) Per this statement, Ms. Murray's attention was then brought to exhibit 33, a 2009 email chain between CVS, a Vi-Jon customer, and Vi-Jon's salesperson, Holly Gram, as well as one from John Hargis of CVS Pharmacy to Arthur G. Marandola, whom Ms. Murray cannot confirm worked for Vi-Jon and seems to have worked for CVS. (Id., at p. 318:7-15.) In the email chain between the latter two, Mr. Hargis forwards a customer email from August 21, 2009, which states in relevant part:

"Are your buyers and managers of baby care products aware that your store brand of baby powder contains talc, a known carcinogen? This information has been available since the late 1970s."

(Id., at pp. 321:2-322:18.) Mr. Marandola forwarded this email exchange to Daniel Roll, the category manager for baby care at CVS; on September 2, 2009, Mr. Roll forwarded this email to Beth A. LaCross and Lanny Lewis, and responded in relevant part:

"Beth and Lanny, at the bottom of this e-mail is a customer complaint about our baby powder. The ingredients are talc and fragrance. I educated myself on talc, and this is what I found. Do we consider a recall on the CVS brand? Or let it ride?..."

Talc is a mineral produced by mining of talc rocks and then processed by crushing, drying, and milling. Processing eliminates a number of trace minerals from the talc but does not separate minute fibers which are very similar to asbestos...

Talc is found in a wide variety of consumer products... However, the products most widely used and pose the most serious health risks are body powders... Talc is the main ingredient in baby powder, medicated powders, perfumed powders, and designer perfumed body powders...

Talc is closely related to the potent carcinogen asbestos. Talc particles have been shown to cause tumors in the ovaries and lungs of cancer victims. For the last 30 years scientists have closely scrutinized talc particles and found dangerous similarities to asbestos. Responding to this evidence in 1973, the FDA drafted a resolution that would limit the amount of asbestos-like fibers and cosmetic grade talc. However, no ruling has ever been made and today cosmetic grade talc remains nonregulated by the federal government. This inaction ignores the 1993 National Toxicology Program Report which found cosmetic grade talc without any asbestos-like fibers cause tumors in animal subjects. Clearly with or without asbestos-like fibers cosmetic grade talcum powder is a carcinogen.

...

Talc is toxic. Talc particles cause tumors in human ovaries and lungs. Numerous studies have shown a strong length between frequent use of talc in the female genital area and ovarian cancer. Talc particles are able to move through the reproductive system and become embedded in the lining of the ovary. Researchers have found talc particles in the ovarian tumors and have found that women with ovarian cancer have used talc powder in their genital area more frequently than healthy women.

Talc poses a health risk when exposed to the lungs. Talc miners have shown higher rates of lung cancer and other respiratory illnesses from exposure to industrial grade talc, which contains dangerous silica and asbestos. The common household posed by talc is inhalation of baby powder used by infants. Since the early 1980s records show several thousand infants each year have died or become seriously ill following accidentally inhalation of baby powder...

Clearly dusting with talc powder endangers an infant's lungs at the prospect of inhalation. Exposing children to this carcinogens is unnecessary and dangerous...

Do not buy or use products containing talc...Write to the FDA and express your concern that a proven carcinogen has remained unregulated while millions of people are unknowingly exposed."

(Id.,

at pp. 325:3-328:24, 331:4-343:4.) Ms. Murray states that Mr. Roll's opinion that processing "does not separate minute fibers" is not information Vi-Jon has seen from the FDA. (Id., at p. 327:16-21.) And while Ms. Murray confirms that Mr. Roll said the above in his email, she stresses that he is "[j]ust a category manager," "[n]ot a scientific person," and that he "is sending this information out based on some information they got somewhere about talc." (Id., at p. 330:2-12.) Ms. Murray also states that this is "a very general document that he's kind of pulled together somewhere" that does not differentiate between cosmetic and industrial talc powder products. (Id., at pp. 330:22-331:2.) While she agrees that she sees what is written in Mr. Roll's email, she does not agree with most, if not all, of his sentiments. (Id., at pp. 325-328, 331-343.) Ms. Murray also testifies that Vi-Jon "never found a carcinogen while manufacturing our product – asbestos in our product." (Id., at p. 341:10-12.)

Ms. Murray then confirms that Ms.

LaCross from CVS forwarded this e-mail exchange to Ms. Gram at Vi-Jon on September 5th, flagging it of high importance, and asking for a response; Ms. Murray could not find a response from Vi-Jon. (Id., at pp. 343:20-345:10.) Ms. Murray states that Vi-Jon did not recall its baby powder after this email because it "had no failing test results" and it did not tell its customers any of the information disclosed in this email because the statements "are just something that a sales category manager sent to another sales-type person...nothing [Vi-Jon] considered factual." (Id., at p. 345:12-23.) In addition, Ms. Murray specifies that "cosmetic talc without asbestos...[is] not toxic. It's talc," and that Vi-Jon "never exposed anyone to any carcinogen." (Id., at p. 346:3-5, 12-13.) Vi-Jon did not have a reason to warn customers because its talc did not contain asbestos and "[t]alc is not a known carcinogen without asbestos." (Id., at pp. 346:19-2, 347:2-4.) Lastly, Ms. Murray states that Vi-Jon maintains it "never found a substance hazardous to health" and that it has "not found any talc that contained asbestos." (Id., at pp. 354:19-20, 355:2-3.)

Mr. Ward also submits the declarations of Dr. Mark Krekeler and Dr. Steven E. Haber, in support of his opposition.

Dr.

Krekeler's Ph.D is in the field of Geotechnical Engineering and Earth Sciences; he is a tenured professor in the Department of Geology and Environmental Earth Sciences at Miami University in Ohio. (Krekeler Decl., ¶ 3.) Dr. Krekeler

states that “[t]alc can have, and commonly does have, natural impurities...[which] may be innocuous...or may be hazardous, as with asbestiform minerals and toxic metals.” (Id., at ¶ 9.) As to asbestos, Dr. Krekeler states that it is “a naturally occurring mineral that is often found in close proximity to talc in mines around the world.” (Id., at ¶

11.) He also states that asbestos minerals can occur in two shapes: asbestiform and nonasbestiform. (Id., at ¶ 12.) These two shapes can occur together, and while the latter “lack[s] the carcinogenic effects commonly associated with asbestos material...[its] cleavage particles can correspond to the definition of respirable fiber as defined by WHO and due to its morphology can have potentially dangerous health effects.” (Id., at ¶ 13.) Dr. Krekeler declares that “[a]sbestos minerals including chrysotile, tremolite, actinolite and anthophyllite are common in talc ores,” and that the “presence of asbestos in talc deposits has been common knowledge amongst industrial mineral companies, research professionals, and mining geologists, dating back to as early as the 1930s. (Id., at ¶ 17.)

Specifically, “[t]alc and chrysotile are associated with each other in talc deposits at the micrometer or nanometer scale, making separation impossible during the mining and manufacturing process.” (Ibid.) Dr. Krekeler states that “[a]sbestiform minerals in talc deposits are pervasive.” (Id., at ¶ 19.)

Dr.

Krekeler declares that he was “asked to assume that the talc used to manufacture CVS and/or Walgreens talc-containing consumer body powder products from 2005 through 2016 was Microtalc BP-210 from Barretts Minerals (a/k/a Mineral Technologies, a/k/a Specialty Minerals) source mines in Montana. I have also been asked to assume that the talc used to manufacture CVS talc-containing foot powders from 2008 to 2012 was sourced from Barretts Minerals (a/k/a Mineral Technologies, a/k/a Specialty Minerals) mines in Montana.” (Id., at ¶ 20.) Dr. Krekeler incorporates his 2023 Montana talc report into his declaration. (Id., at ¶¶ 21-22.) In the report, Dr. Krekeler analyzes evidence regarding the geology mineralogy, and test results for talc ore sourced from mines the “Treasure and Regal mines in southwest Montana.” (Ibid.) Dr. Krekeler opines based on his assumptions as to the talc sources used in the CVS and Walgreens products at issue; his “critical review and analysis of the scientific

literature, internal/historical test results, contemporary test results and information on the mining and milling processes involved”; and his “education, training and experience,” Dr. Krekeler opines that to a reasonable degree of scientific certainty that CVS and Walgreens-branded body powder products manufactured between 2005 and 2016 and CVS-branded consumer foot powder products from 2008 to 2012...more likely than not contained asbestos and consumers using such products would have been exposed to asbestos.” (Id., at ¶ 26.)

In the report, Dr. Krekeler notes that generally, “talc mines in Montana are located in one of three mountain ranges in the southwestern region of the state. These are the Ruby Range, the Greenhorn Range, and the Gravelly Range. Major talc mines in Montana include the Willow Creek Mine (The Greenhorn Range), the Regal Mine, The Yellowstone Mine (Gravelly Range), the functionally co-located Treasure Mine, Treasure Chest Mine, and Beaverhead Mine (Ruby Range).” (Krekeler Decl., Exh. 2, p. 75.) Dr. Krekeler relies on historical testing of a large swathe of mines in Montana and provides a chart reflecting the test results. (Id. at pp.174-207.) The test results show that each of the mines tested in each of three mountain ranges where talc is mined contained some amount of asbestos fiber. (Id.) Relying on these test results and studies conducted regarding asbestos exposure to workers in the Beaverhead, Treasure, Willow Creek, and Yellowstone mines, Dr. Krekeler opines that “given the geological properties of these materials, and the geology of” these mines, it is “more probable than not that persons who used or were exposed to talc product derived from these mines” were exposed to asbestos. (Id. at p.127.) Dr. Krekeler summarizes his opinions from his report as follows:

“1.) A mature body of scientific literature exists on talc and commensurately a mature body of literature that clearly shows the association of talc and asbestos minerals in a wide range of geologic conditions also exists. Talc deposits and associated lithologies in Montana experienced conditions that would enable the formation of asbestos and related non-asbestiform minerals. Large quantities of talc have been mined from Montana since the 1940s making Montana talc a significant source.

2.) A body of government, peer-reviewed, and company literature reviewed thus far provide

context for evaluating the geology of the deposits. Companies had access to this and could have developed basic geologic models to assess that talc deposits could have had asbestos or countable particles (e.g., the IWGACP December 2021 White Paper).

3.) It is

scientifically much more probable than not, that asbestos occurred in talc ores from the Beaverhead, Treasure, Regal, Willow Creek, and Yellowstone Mines as well as other talc mines in Montana. The common forms of asbestos or countable particles (e.g., IWGACP December 2021 White Paper) are, or are expected to be, chrysotile and tremolite. However, forms of asbestos or countable particles of actinolite, amosite, anthophyllite, and crocidolite asbestos could be present in localized environments in talc ore, and/or could be or likely to very likely would be, derived from some associated lithologies in and around the mines. It is scientifically much more probable than not that lithologies (e.g., amphibolites, schists, mafic dikes, iron formation) adjacent to talc units in the deposits and mines contributed countable particles (e.g., IWGACP December 2021 White Paper) to talc materials through the commonly used processes of drilling, blasting, digging, White Paper) to talc materials through the commonly used processes of drilling, blasting, digging, transporting and storing ore. Evidence exists that some companies at least partially understand asbestos contributions from adjacent lithologies (e.g., The Regal Mine).

4.) A body of

testing indicates findings for asbestos in multiple mines over a period of decades.

5.) Flawed

testing (e.g., powder X-ray diffraction) has been used extensively and this method of analysis does not have an adequate detection limit for the purpose of asbestos analysis. The observed records indicate that a large amount of testing was not done in a scientifically meaningful way.

6.) Based on

the geological properties of these materials, It is more probable than not, that workers exposed to talc materials at and generated from Montana talc mines were exposed to asbestos.

7.) Based on

the geological properties of these materials, it is more probable than not, that people or consumers exposed to talc materials at and generated from Montana talc mines were exposed to asbestos.”

(Krekeler

Decl., Exh. 3, p.149.)

Dr.

Krekeler’s declaration assumes that the CVS body and foot powders contained “Microtalc BP-210 from Barretts Minerals” (Krekeler Decl., at ¶ 2.) Plaintiff’s evidence shows that Vi-Jon was using Microtalc BP-210 in its Walgreens and CVS body and foot powders by 2014. (Index, Exh. D, at 262:2-22.) Dr. Krekeler’s declaration and incorporated report fail to state that Microtalc BP-210 came from an asbestos-contaminated mine. Dr. Krekeler’s report concludes that talc ores from “Beaverhead, Treasure, Regal, Willow Creek, and Yellowstone Mines as well as other talc mines in Montana” are contaminated with asbestos. (Krekeler Decl., Exh., p.2.) However, nothing in Dr.

Krekeler’s 200-page report, Dr. Krekeler’s declaration, or the discovery record identifies where Barretts sourced the talc used in Microtalc BP-210. Although Dr. Krekeler alleges Barretts operates the Regal Mine, the Treasure State Mine, and the Barretts Mill in Montana, these facts are case-specific hearsay which Dr. Krekeler may not relay to the court. (See Sanchez, supra, 63 Cal.4th at pp.685-686.)

Dr.

Krekeler’s report is, however, sufficient to support an inference that the Walgreens & CVS brand body and foot powders Mr. Ward purchased were more likely than not contaminated with asbestos because the report shows that most of the major mines in the mountain ranges where talc is mined in Montana are contaminated with asbestos. Thus, the report supports an inference that talc sourced from Montana is more likely than not contaminated with asbestos. This inference combined with Mr. Ward’s evidence that Walgreens’ and CVS’ body and foot powders came from talc suppliers using Montana talc between 1999 and 2016 leads to an inference that the Walgreens’ and CVS’ body and foot powders Mr. Ward purchased at this time were also contaminated with asbestos.

Dr.

Haber is a board-certified physician with a subspecialty in pulmonary disease, whose declaration concerns “asbestos disease causation and the causation of Mr. Ward’s malignant mesothelioma.” (Haber Decl., ¶ 9.) Dr. Haber states that asbestos “is a well-known cause of malignant mesothelioma” and that “[a]ll fiber types of asbestos are capable of inducing mesothelioma.” (Id., at ¶¶

11-12.) He further states that “[a]sbestos-related mesothelioma...is a dose-response disease, with sources of airborne asbestos exposure, including handling or manipulation of asbestos-containing products resulting in airborne fiber release, contributing to an individual’s cumulative dose;” scientific data does not support a threshold dose (Id., at ¶¶ 13, 16.)

Referencing various studies that examine the epidemiology of cosmetic talc and mesothelioma, and states that these studies “similarly concluded that the presence of noncommercial asbestos in tissue is suggestive of prior talc use,” and one study specifically hypothesized that the source of asbestos fibers in women “may be cosmetic talc because of contamination of the talc with anthophyllite and tremolite.” (Id., at ¶¶ 21-22.) In addition, Dr.

Krekeler references a 2014 case report of woman who passed away from mesothelioma and “whose only known exposure was to cosmetic talcum powder, tremolite and anthophyllite [were] found in the lung and lymph tissue as well as in bottles of the same brand of talcum powder used by the woman.” (Id., at ¶

23.)

As

to the route of exposure, Dr. Haber contends that for malignant mesothelioma, “the most important route is inhalation via the lungs...[and] [f]rom there, the asbestos can reach mesothelial tissue.” (Id., at ¶ 24.) He opines, based on review of scientific literature and studies, “that use of talcum powder products that contain or are contaminated with asbestos, including body powders, results in the release of airborne asbestos fibers, with the exposure likely ranging from 0.1 f/cc to 4.0 f/cc.” (Id., at ¶ 25.) Dr. Haber further opines based on his review of the case and Dr. Kressler’s declaration that:

a.

“Asbestos
is the major cause of malignant mesothelioma.

b.

The

carcinogenic risks apply to all asbestos fiber types, regardless of source, including from talc containing asbestos.

c.

Talc

containing asbestos fibers is carcinogenic to humans and causes malignant mesothelioma.

d.

There

is insufficient proof of the existence of 'spontaneous' malignant mesothelioma in humans (i.e., unrelated to any external cause). Studies evaluating exposures in the past did not evaluate talc exposures. Information regarding the presence of asbestos in cosmetic talc was previously withheld from the public, and historically, individuals with mesothelioma may have been unaware of such exposures, leading to a lack of medical investigation of exposure sources. It would be incorrect to assume such cases were 'spontaneous.' To the extent that such cases occur, they would be exceptionally rare, far below the "background" rate.

e.

There

is no established threshold of asbestos exposure below which there is no risk for malignant mesothelioma, and epidemiological studies reveal significant risk for malignant mesothelioma below (and, in some cases, well below) 1 fiber/cc-year.

f.

Visible

dust from asbestos-containing products contains large numbers of asbestos fibers that greatly exceed background ambient levels.

g.

Consumer

talcum powder products are used in a manner that creates respirable dust in the user's breathing zone.

h.

Asbestos-related

mesothelioma is a dose-response disease, with sources of airborne asbestos exposure contributing to an individual's cumulative dose. Each exposure contributes to the total cumulative dose, which, in turn, results in an increased risk for development of the disease.”

(Id.,

at ¶

31.)

Mr.

Ward provides sufficient affirmative evidence establishing that he was exposed to asbestos by an asbestos-containing product for which Vi-Jon was responsible.

Mr. Ward provides evidence to show that the CVS and Walgreens talc body and foot powder products he used for cosmetic reasons likely contained asbestos.

There is also evidence that Mr. Ward used the asbestos-containing products identified in the evidence. Mr. Ward successfully meets his burden on summary judgment to raise a triable issue of material fact over whether Vi-Jon caused his injuries.

Accordingly,

Vi-Jon's motion for summary judgment is denied.

C.

Punitive Damages

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. “Although the clear and convincing evidentiary standard is a stringent one, ‘it does not impose on a plaintiff the obligation to “prove” a case for punitive damages at summary judgment [or summary adjudication.]’ [Citations.] Even so, ‘where the plaintiff’s ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.’ [Citation.]” (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 1158 1159.) For a corporate defendant, the oppression, fraud or malice “must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied “‘if the evidence permits a clear and convincing inference that

within the corporate hierarchy authorized persons acted despicably in “willful and conscious disregard of the rights or safety of others.” [Citation.]” (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090.) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id., at p. 1091.)

“[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id., at pp. 1300-1301.)

Vi-Jon moves for summary adjudication of Mr. Ward's claim for punitive damages.[1]

Vi-Jon argues: “Plaintiff has provided no facts or evidence at all demonstrating fraud, oppression or malice on the part of Vi-Jon. Vi-Jon propounded comprehensive written discovery to Plaintiff asking him to specifically identify all facts, all documents, all witnesses, and the knowledge those witnesses may possess that support his prayer for punitive damages and Plaintiff's responses are factually devoid and lacking any supporting evidence or documents supporting the contention that an Officer, Director, or Managing Agent of Vi-Jon acted with oppression, fraud, or malice against Plaintiff Antony Ward. (UMF No. 29) Plaintiff's testimony and discovery responses confirm that he has no personal knowledge or information specifically related to Vi-Jon and fails to cite to any conduct or evidence that satisfies the above standard. (UMF Nos. 1-27, 29) (See, e.g., Andrews, 138 Cal.App.4th at 106-107) [granting summary judgment in an asbestos product liability lawsuit because plaintiffs' discovery responses were “factually devoid” and therefore did not raise a triable issue of fact].) Plaintiff's evidence similarly fails to identify any Vi-Jon officer, director, or managing agent by name or any documents showing communications with Vi-Jon's corporate officers, directors, or managing agents. (Id.)” (Motion at pp. 26-27.)

In opposition, Mr. Ward argues that all the evidence described above "is more than sufficient to demonstrate triable issues of fact exist as to Defendant Vi-Jon's conscious disregard for the health and safety of its consumers, including Mr. Ward." (Opp., at p. 16.) However, Mr. Ward makes no specific argument as to whether Vi-Jon knew its products contained asbestos and continued to sell them without warnings.

In reply, Vi-Jon argues that Mr. Ward fails to present clear and convincing evidence that Vi-Jon knew or should have known its talc powder products contained asbestos: "the discovery to date in this case established that Vi-Jon (1) had a zero tolerance policy for asbestos in the talc it used for its products; (2) purchased only cosmetic grade talc, a condition of which is that the talc is asbestos-free; (3) required its supplier to test the raw talc for the presence of asbestos using state of the art equipment and testing protocols in accordance with the USP; and (4) required certifications for every lot received from its supplier that the talc was asbestos-free. There is not a single document in this case, or any testimony from any Vi-Jon employee, that establishes that Vi-Jon was ever told, or ever believed, that its talcum powder products contained asbestos." (Reply at p. 8.) In addition, Defendant argues that Mr. Ward fails to present clear and convincing evidence that it engaged in acts rising to the level of malice, fraud, or oppression. (Reply at pp. 8-9.)

1. Defendant's Burden:

Factually Devoid

Vi-Jon presets evidence that Mr. Ward's discovery responses were factually devoid as to facts supporting their claim for punitive damages. Vi-Jon directed special interrogatories number 9 and request for production No. 13 to the topic of punitive damages. The responses to the interrogatory and the request for production both incorporated the responses to no. 1. As discussed, the responses to interrogatory and request for production no. 1 contained significant facts supporting Mr. Ward's claim that he was exposed to asbestos-containing products which Defendant was responsible for. The responses, however, fail to show that Vi-Jon knew its products contained asbestos and continued to sell them without warnings. Thus, the responses are factually devoid of facts which establish that Defendant engaged in conduct amounting to malice. Vi-Jon satisfies its initial burden based on factually devoid discovery responses.

2. Plaintiff's burden:

In his separate statement, Mr. Ward does not dispute Vi-Jon's claim that "Vi-Jon propounded comprehensive written discovery to Plaintiff asking him to specifically identify all facts, all documents, all witnesses, and the knowledge those witnesses may possess that support his prayer for punitive damages and Plaintiff's responses are factually devoid and lacking any supporting evidence or documents supporting the contention that an officer, director, or managing agent of Vi-Jon acted with oppression, fraud, or malice against Plaintiff Anthony Ward." (PSS No. 29.) Mr. Ward also points to the evidence described above, specifically the various depositions of Ms. Murray, to support his assertion, but as seen above, the evidence fails to show that Vi-Jon knew its products contained asbestos and continued to sell them without warnings. Ms. Murray continuously maintained that Vi-Jon never found asbestos in their talc products. Therefore, Mr. Ward fails to present evidence to raise a triable issue of material fact over whether Vi-Jon knew its products were contaminated with asbestos and continued to sell them without warnings.

Accordingly, Vi-Jon's motion for summary adjudication of Mr. Ward's claim for punitive damages is granted.

IV.

Conclusion

Vi-Jon, LLC's motion for summary judgment is denied. The motion for summary adjudication of Mr. Ward's claim for punitive damages is granted.

Plaintiff to give notice.

[1] Defendant also initially moved for summary adjudication of Mr. Ward's concealment and fraud claims. However, Mr. Ward's opposition only addresses Vi-Jon's punitive damages claim. In addition, in reply, Vi-Jon requests that if the motion for summary judgment is denied, that in the alternative, the court grant its motion for summary adjudication as to punitive damages only; the conclusion does not mention the claims for fraud and concealment. Mr. Ward's complaint does not allege a fraud cause of action. Accordingly, the court denies as moot Defendant's motion for summary adjudication on the fraud and concealment claims.